

BYLAWS OF THE UNITED STATES OLYMPIC & PARALYMPIC COMMITTEE

Effective as of February 1, 2025

SECTION 1

NAME, OFFICES, AND DEFINITIONS

Section 1.1 The Corporation. The name of this organization, incorporated by an Act of Congress (36 USC §§ 220501-220529) (the "Act"), will be the United States Olympic and Paralympic Committee (the "corporation"), and the corporation will be exempt from taxation within the meaning of Section 501(c)(3) of the Internal Revenue Code. To the extent that the Act refers to the corporation's "constitution and bylaws," such reference will be deemed to refer to this document (the "Bylaws").

Section 1.2 Business Offices. The principal office of the corporation is located at One Olympic Plaza, Colorado Springs, Colorado 80909. The registered office of the corporation may be, but need not be, the same as the principal office, and the address of the registered office may be changed from time to time by the corporation Board.

Section 1.3 Definitions. As used in these Bylaws the term:

- a) "AAC" means the corporation's Athletes' Advisory Council;
- b) "Amateur Athlete" means any athlete who meets the eligibility standards established by the NGB for the sport in which the athlete competes;
- c) The "Act" is the Ted Stevens Olympic and Amateur Sports Act, as amended;
- d) "Amateur Athletic Competition" means a contest, game, meet, match, tournament, regatta, or other event in which Amateur Athletes compete;
- e) "Amateur Sports Organization" means a not-for-profit corporation, club, federation, union, association, or other group organized in the United States that sponsors or arranges any Amateur Athletic Competition;
- f) "ANOC" means the Association of National Olympic Committees;
- g) "AOC" means the Affiliate Organizations Council
- h) "corporation Board" means the corporation's Board of Directors;
- i) "CEO" means the corporation's chief executive officer;
- j) "Chair" means the chairperson of the corporation's Board of Directors;
- k) "Code" means the Code of Conduct as defined in Section 12 of these Bylaws;
- l) "Delegation Event" means, individually or collectively as applicable, the Olympic Games, the Olympic Winter Games, the Paralympic Games, the Paralympic Winter Games, the Pan American Games, and the Parapan American Games;
- m) "IF" means the international federation for a particular sport;
- n) "International Amateur Athletic Competition" means any Amateur Athletic Competition between any athlete or athletes representing the

- United States, either individually or as a part of a team, and any athlete or athletes representing any foreign country¹;
- o) "IOC" means the International Olympic Committee;
 - p) "IPC" means the International Paralympic Committee;
 - q) "members" means those organizations accepted into the membership of the corporation as set out in Section 8 of these Bylaws;
 - r) "NGB" means a National Governing Body recognized and certified by the corporation as set out in Section 8 of these Bylaws;
 - s) "NGBC" means the corporation's National Governing Bodies Council;
 - t) "OCOG" means an Organizing Committee for the Olympic Games or the Olympic Winter Games, as applicable;
 - u) "Olympic Games" means either the summer Olympic Games or the Olympic Winter Games as applicable unless specified otherwise;
 - v) "Panam Sports" means the Pan American Sport Organization, a confederation of national Olympic committees from the Americas;
 - w) "PSO" means a Para Sport Organization that is an Amateur Sports Organization recognized and certified as an NGB by the corporation in accordance with Section 8 of these Bylaws;
 - x) "Protected Competition" means:
 - i. a Delegation Event
 - ii. a Qualifying Competition
 - y) "Quadrennium" means the four-year period that begins on the first day of January after the summer Olympic Games and extends until the last day of December following the next summer Olympic Games;
 - z) "Qualifying Competition" means either of the following:
 - i. "NGB Qualifying Competition": Any competition or activity organized or approved by the NGB (e.g., team selection camp, tryout, national championship, Trials event) where the athlete's performance or results are considered in the published selection criteria to represent the United States in a Delegation Event.
 - ii. "International Qualifying Competition": Any international sport competition where (i) athletes represent the United States against athletes representing other nations, (ii) the NGB officially designates entrants, as required by the competition organizers, and (iii) athlete results or

¹ This term is not intended to be limited to athletes or teams known as "national" teams of the United States. In the context of this definition, it is intended that any United States amateur sports organization that wishes to conduct or sponsor amateur athletic competition between United States amateur athletes, or teams of United States amateur athletes representing such organization and athletes or teams of amateur athletes representing a foreign country or institution, must obtain a Sanction from the appropriate NGB. Correlatively, an NGB must Sanction such international amateur athletic competition upon satisfaction by the applicant organization of the objective and nondiscriminatory Sanction criteria set forth in Section 220525 of the Act. This definition is not intended to change the prevailing practices that vary from sport to sport with respect to sanctioning of regular "border" scholastic or collegiate competition between American and Canadian or Mexican educational institutions, nor is any provision in these Bylaws intended to authorize an NGB to designate or select (as distinct merely from certifying on request the eligibility or amateur status of) United States amateur athletes or a team of United States amateur athletes to participate in an international competition other than one involving a United States national team.

performance are included in the published criteria (i.e., International Federation qualification system or NGB selection criteria) to qualify, or be selected, to represent the United States in a Delegation Event;

- aa) "Sanction" means a certificate of approval issued by an NGB in accordance with Section 220525 of the Act;
- bb) "USADA" means the U.S. Anti-Doping Agency;
- cc) "USCSS" means the U.S. Center for SafeSport;
- dd) "USOPA" means the corporation's U.S. Olympians and Paralympians Association;
- ee) "USOPC 10 Year Athlete²" means an athlete who has been selected by their NGB to represent the United States in a Delegation Event or other International Qualifying Competition within the previous 10 years; and
- ff) "USOPC 10 Year+ Athlete" means an athlete who has been selected by their NGB to represent the United States in a Delegation Event or other International Qualifying Competition but not within the previous 10 years.
- gg) "USOPF" means the U.S. Olympic and Paralympic Foundation;

Section 1.4 Jurisdiction. The corporation will seek to enforce and comply with all rules and regulations of the IOC including the Olympic Charter, IPC, and Panam Sports. In addition, the corporation will abide by the World Anti-Doping Code. Pursuant to the authority granted by the IOC, IPC, and Panam Sports, the corporation will have exclusive jurisdiction to enter competitors who will represent the United States in Delegation Events and the Youth Olympic Games and to enforce in connection therewith the definition of an eligible athlete adopted by the IOC, IPC and Panam Sports. The corporation will be and remain autonomous from political influence in accordance with the Olympic Charter.

² Where an athlete representative must be a USOPC 10 Year Athlete, the following norms will apply: The period of eligibility starts when an athlete is named to Team USA in a Protected Competition and ends on December 31 of the tenth year after their last participation in a Protected Competition. Qualification within that period applies without adjustment or expiration throughout the term(s) of the position held by the athlete representative, including any consecutive reappointment term(s); in cases where the representative's seat derives from an underlying office (e.g., a corporation Board member serving on a Board committee, an AAC member serving on a corporation Board committee) this measurement is made based on the underlying office rather than the new role (i.e., no additional measurement applied); and eligibility to serve as a USOPC 10 Year Athlete representative may not be obtained through events that categorize entrants in age-restricted classifications commonly known as "Juniors," "Masters," "Seniors," "Veterans" or other similarly designated age-restricted competitions.

SECTION 2

THE MISSION

Section 2.1 Mission and Core Principles. The mission of the corporation is *Empowering the competitive excellence and well-being of Team USA athletes, championing the power of sport, and inspiring our nation.*

The Core Principles of the corporation are:

- We promote and protect athletes' rights, safety, and wellness
- We champion the integrity of sport
- We respect the important role of our member organizations and support their need for success
- We set clear standards of organizational excellence and hold ourselves and all member organizations accountable
- We engage as a trusted and influential leader to advance the global Olympic & Paralympic Movements
- We honor and celebrate the legacy of Olympic & Paralympic athletes

Section 2.2 Review of Mission Statement. The corporation Board will review and assess the mission of the corporation on an ongoing basis, and in all events at least at the last regularly scheduled corporation Board meeting at the end of the first year of each Quadrennium, to ensure that it serves as an appropriate guide for strategic planning and decision making.

Section 2.3 Purposes. The purposes of the corporation are set forth in Section 220503 of the Act and will be reviewed and prioritized by the corporation Board on an ongoing basis as part of an annual strategic planning process.

Section 2.4 Reports to Congress. The corporation will provide recurring written reports to Congress as set out in the Act. In preparing each such report, the corporation will provide the AAC, NGBC, and USOPA with an opportunity to contribute their own independent and supplementary report, which the USOPC will include verbatim and in its entirety.

SECTION 3

THE CORPORATION BOARD

Section 3.1 General Powers. The business and affairs of the corporation will be overseen by the corporation Board, except as otherwise provided in the Act or these Bylaws. The corporation Board will have ultimate authority over the business, policies, affairs, and activities of the corporation, including, but not limited to, the authority:

- a) to elect independent members of the corporation Board, following receipt of the recommendations of the Nominating and Governance Committee, and to elect the Chair;
- b) to remove the Chair or any other member of the corporation Board or any Board committee for cause or not for cause;
- c) to elect one member of the corporation Board to act as, and be referred to internationally as, the President of U.S. Paralympics;
- d) to hire, fire, evaluate, and set the compensation for the CEO;
- e) to enact, amend, or repeal provisions of these Bylaws;
- f) to admit new members, to reclassify and to terminate the membership of members, as provided by these Bylaws;
- g) to receive and review the reports of the CEO and committees and task forces;
- h) to approve the selection of independent auditors;
- i) to maintain a culture of ethical behavior and compliance throughout the corporation;
- j) to achieve as much transparency in the operations of the corporation as is reasonably achievable and to keep the attendees at the Olympic and Paralympic Assembly and the stakeholders in the Olympic and Paralympic movements in the United States informed about the business and operations of the corporation; and
- k) to take such other action as is customary for a Board of directors of a corporation.

Further, the corporation Board will:

- a) set the strategic plan, budget and corporate performance measures;
- b) create policy direction for the CEO and staff on significant issues facing the corporation;
- c) monitor the financial reporting process and the legal and regulatory compliance program;
- d) set policy on capital structure, financial strategies, borrowing commitments and long range financial planning;
- e) monitor the corporation's assets to ensure that they are being properly protected;

- f) ensure that the corporation Board is properly structured and is capable of acting in case of an unforeseen corporate crisis; and
- g) conduct an annual review of the corporation's performance and effectiveness and determine future actions required to achieve the corporation's mission.

The corporation Board may seek assistance in these tasks from the committees it appoints, but the corporation Board will remain ultimately responsible for ensuring these tasks are carried out appropriately.

In the performance of their duties hereunder, Board members will always comply with the terms of the USOPC Board Procedures, as adopted by the Board from time to time.

Section 3.2 Composition and Voting. The composition of the corporation Board will be as follows:

- a) five independent members ("independent directors") elected by the corporation Board from among individuals recommended by the Nominating and Governance Committee pursuant to the process set out in Section 3.5 of these Bylaws;
- b) three members elected by the NGBC pursuant to the process set out in Section 3.5 of these Bylaws;
- c) three AAC athlete members elected by the AAC pursuant to the process set out in Section 3.5 of these Bylaws;
- d) two At-Large retired athlete members elected pursuant to the process set out in Section 3.5 of these Bylaws ("At-Large Athlete" representatives);
- e) the United States members of the IOC, who assume their positions as directors on the corporation Board *ex officio* by virtue of, and for the same term as, their IOC membership;
- f) the United States members of the IPC Governing Board, who assume their positions as directors on the Board *ex officio* by virtue of, and for the same term as, their service on the IPC Governing Board; and
- g) the CEO of the corporation, as a non-voting *ex officio* member.

The IOC and IPC *ex officio* members will each have one vote, and the other voting directors will each have a vote equal to the number of IOC *ex officio* members who are at that time serving on the corporation Board.

Consistent with the Act and the terms of this Section 3.2, the corporation Board will always include elected athlete representatives with at least 33.3% of the overall voting power of the Board, USOPC 10 Year Athletes will constitute at least 20% of the voting power of the Board, and USOPC 10 Year and USOPC 10 Year+ Athletes will collectively constitute at least 33.3% of the total number of people serving as voting

members of the Board.

Corporation Board members will be entitled to participate in discussions and (except for non-voting members) vote on all issues presented to the corporation Board as to which they do not have a conflict of interest. All corporation Board members will disclose any actual or potential conflict of interest prior to participating in a discussion or vote on any matter pertaining to such conflict.

The corporation Board will hold at least one executive session, during the last regularly scheduled corporation Board meeting each year, at which the CEO, notwithstanding their status as a member of the corporation Board, will not be present, specifically for the purpose of discussing the CEO's performance.

Subject to the terms of Section 3.9 below and other than *ex officio* Board seats, no corporation Board member may serve more than two terms on the Board (including as these may be affected by Section 3.6 below) without a gap of at least four years before additional service begins.

Section 3.3 USOPF Chair. The chair of USOPF, *ex officio*, will serve as USOPF liaison to the Board, invited but not required to attend all regular meetings of the Board. Where they attend such meetings, the USOPF Chair may contribute information and engage in Board discussions as a guest but will have no vote or other role.

Section 3.4 Independence. A director will not be considered an "independent director" for purposes of Section 3.2 of these Bylaws if, at any time during the two years preceding commencement of or during their term or position as a director:

- a) the director was employed by or held any paid position or any volunteer governance position with the corporation, an NGB, the IOC, the IPC, an IOC- and/or IPC-recognized IF or OCOG, Panam Sports, or ANOC;
- b) an immediate family member of the director was employed by or held any paid position or any volunteer governance position with the corporation, an NGB, the IOC, the IPC, an IOC- and/or IPC-recognized IF or OCOG, Panam Sports, or ANOC;
- c) the director was affiliated with or employed by the corporation's outside auditor or outside counsel;
- d) an immediate family member of the director was affiliated with or employed by the corporation's outside auditor or outside counsel as a partner, principal or manager; or
- e) the director held a paid position or any AAC, NGBC, USOPA, or AOC governance or leadership position (e.g., AOC chair).

For the sake of clarity, and notwithstanding anything to the contrary contained herein, active involvement by an individual or an individual's immediate family member as a member of a corporation Board committee or the Board of Directors or Trustees of the

USOPF will not, in and of itself, undermine an individual's independence for purposes hereof.

A director will not be considered independent if at any time during the two years preceding commencement of or during their term or position as a director the director receives any compensation from the corporation, directly or indirectly. For purposes of this rule, compensation does not include reimbursement of out-of-pocket expenses incurred for the benefit of the corporation or receipt of any benefits, subsidies or payments available to athletes to support their training.

A director will not be considered independent if at any time during the two years preceding commencement of or during their term or position as a director the director is an officer, member of senior management, controlling shareholder, or partner of a corporation or partnership or other business entity that has a material business relationship with the corporation and the director was/is directly involved in or oversees/oversaw the business relationship.

A director will not be considered independent if at any time during the two years preceding commencement of or during their term or position as a director the director or the director's spouse is an officer, employee, director, or trustee of a nonprofit organization to which the corporation or the U.S. Olympic Endowment makes payments in any year in excess of five percent of the organization's consolidated gross annual revenues, or \$100,000, whichever is less. The Ethics and Compliance Committee also will administer standards concerning any charitable contributions to organizations otherwise associated with a director or any spouse or other family member of the director. The corporation will be guided by the interests of the corporation and its stakeholders in determining whether and the extent to which it makes charitable contributions.

The definitions of independence set out in this Section 3.4 for "independent directors" will also be used to determine whether an individual is independent for other purposes, as set forth in these Bylaws.

When the guidelines in this Section 3.4 do not address a particular relationship, the determination of whether the relationship is material, and whether a director is independent, will be made by the Nominating and Governance Committee if it concerns a person nominated or under consideration for selection to be a member of the corporation Board or to be a member of the Ethics and Compliance Committee or the Nominating and Governance Committee. If the issue concerns an individual who is already serving as a member of the corporation Board, the Ethics and Compliance Committee, or the Nominating and Governance Committee, the determination will be made by members of the corporation Board who occupy the independent director seats on the corporation Board (with the corporation Board member whose independence is at issue not voting if the issue concerns a current member of the corporation Board), after receiving the recommendation of the Nominating and Governance Committee.

The Nominating and Governance Committee may determine that, in its judgment, a director who does not meet these guidelines strictly nonetheless, under all the facts and circumstances, does not have a relationship with the corporation or any organization, entity, or individual associated with the corporation that would interfere with the perception or reality of the director's independent judgment, and that such a person may nevertheless be independent or an independent director under these Bylaws.

The Nominating and Governance Committee will review at least annually the independence of "independent directors" and others who are required by these Bylaws to be independent. Board members will disclose their activities and affiliations pertinent to this Section 3.4 at least annually, and at any time that such activities or affiliations change, as part of the USOPC Conflicts of Interest disclosure process.

Section 3.5 Selection to the Corporation Board.

Section 3.5.1 Independent Corporation Board Members.

When an independent corporation Board seat is going to become available the corporation Board may provide the Nominating and Governance Committee with a written description of particular qualifications, skills and experiences the corporation Board feels would be beneficial to the corporation in its next corporation Board member, over and above the standing qualifications developed and maintained under Section 5.8.3(c) of these Bylaws. The Nominating and Governance Committee will solicit candidates from the Olympic and Paralympic community, including, without limitation, the AAC, the NGBC, the AOC, USOPA, and the general public after disseminating the written director criteria referred to in Section 5.8.3(c) hereof. The committee will then review and, if appropriate, interview candidates for such corporation Board seat and will recommend one candidate for the corporation Board to consider in filling each available corporation Board seat. Candidates proposed by the committee for consideration by the corporation Board will be accompanied by a written description setting forth the committee's views regarding the qualifications, skills and experiences making each candidate a good selection for the corporation Board.

The corporation Board will then, at a duly noticed meeting, vote upon each candidate so recommended by the committee. Election of new members to the corporation Board will be by majority vote. The corporation Board will accompany such vote with feedback on each candidate, either confirming the views of the committee or specifying any differing views of the corporation Board. In the event the corporation Board elects a candidate or candidates recommended by the committee, the views of the corporation Board and the committee regarding the qualifications, skills and experiences that led the corporation Board to elect such candidate(s) will promptly be made public.

In the event the corporation Board does not elect a candidate recommended by

the committee, as soon as possible thereafter, the committee will provide the corporation Board with an alternative candidate, again accompanied by a written description setting forth the committee's views regarding the qualifications, skills and experiences of the new candidate. This process will continue until the corporation Board elects a candidate recommended by the committee and the open corporation Board seat is filled.

Section 3.5.2 AAC Athlete, At-Large Athlete, NGBC Representatives. Each of the AAC and the NGBC will develop and maintain election procedures for their representatives on the corporation Board and the AAC will develop and maintain election procedures for the At-Large Athlete representatives. These procedures must include consultation with the Nominating and Governance Committee as set out in these Bylaws. The procedures must be codified in their bylaws in a form and with language approved by the corporation Board in advance. All candidates for corporation Board service must be qualified to serve under the terms of these Bylaws and pursuant to the director criteria referred to in Section 5.11.3.(c) hereof.

In their elections of corporation Board members (i) the AAC will ensure that all AAC representatives on the corporation Board are USOPC 10 Year Athletes, that at least one AAC representative on the corporation board be an AAC member, and that at least one AAC representative on the corporation Board represents a Paralympic sport; and (ii) the AAC will ensure that (a) its At-Large Athlete representative election process is consistent with its election process for AAC Representatives to the Board, after the creation of a candidate slate based on a nominating group operated jointly with USOPA as set out in the USOPC Board Elections Policy and that (b) all At-Large Athlete representatives are USOPC 10 Year+ Athletes. For clarity, it is the stated intention of the AAC that the AAC chair's corporation Board seat set out in the Act is designated to the AAC-elected athlete representatives.

When an AAC, At-Large Athlete, or NGBC representative seat on the corporation Board is going to become available, the Nominating and Governance Committee will notify the electing organization(s) and be available to assist with the timely conduct of an election using the procedures referred to in this Section 3.5.2, and may provide the electing organization(s) with specific information on current corporation Board configuration and needs, including in the areas set out in Section 5.11.3.(d) of these Bylaws. The electing organization(s) will provide this Nominating and Governance Committee-provided information verbatim to all voting members and candidates in advance of the relevant vote.

Section 3.6 Term for Directors.

Section 3.6.1 General. The term for each corporation Board member is four years, subject to an overall term limit of two such four-year terms, except that:

- a) the term for the CEO will continue for so long as the CEO continues in

- that capacity and will terminate immediately upon termination of the CEO's employment as CEO;
- b) the term for the USOPF chair will continue for so long as that person continues in that capacity and will terminate immediately upon expiration or termination in that role;
- c) the term for the United States members of the IOC will continue for so long as such persons continue in their capacity as United States members of the IOC and will terminate immediately upon termination of such IOC membership;
- d) the term for the United States members of the IPC Governing Board will continue for so long as such persons continue in their capacity as United States members of the IPC Governing Board and will terminate immediately upon termination of such IPC Governing Board service; and
- e) the term for the Chair will be as provided in Section 3.9.2 of these Bylaws.

When a director is elected to fill a vacancy because of the resignation, removal, incapacity, disability or death of a director, (i) if the remaining term is for less than two years, then the director's service during such shortened term will not count towards the eight-year limitation described above; and (ii) if the remaining term is for between two and four years, then the director's service during such shortened term will count as four-years towards the eight-year limitation described above. This approach will also apply to committee member terms (other than corporation Board members serving on such committees) under Section 5 below.

Section 3.6.2 Terms of Office to be Staggered. The terms of office of members of the corporation Board (other than the *ex officio* corporation Board members) will be staggered, with the aim that a roughly equal proportion of them will be elected pursuant to these Bylaws every other year as contemplated in Section 3.6.3 below.

Section 3.6.3 Term Completions. The corporation Board members' staggered terms will end on December 31 of applicable even-numbered years and new corporation Board members' terms of office will begin on January 1 of applicable odd-numbered years; provided, however, that each director will hold office until such director's successor will have been elected and qualified, or until such director's earlier death, disability, resignation, disqualification, incapacity or removal.

Section 3.7 Qualifications. Directors must be at least 18 years old and have the legal right to work in the United States without sponsorship, and should have the highest personal values, judgment, and integrity, as well as a commitment to Olympic and Paralympic ideals.

An individual is ineligible for a leadership role if they have:

- a) A felony conviction involving harm to a member of a vulnerable population such as children, elderly or individuals with a disability;
- b) A felony conviction for sexual abuse or assault of any kind;
- c) A felony conviction for a hate crime;
- d) A conviction for another crime of fraud or moral turpitude within the previous 15 years
- e) Committed an Anti-Doping Rule Violation (ADRV) under the World Anti-Doping Code, which resulted in a sanction that included any period of ineligibility; or
- f) Served a period of ineligibility for a SafeSport Code violation as defined by the USCSS or an NGB.

All of the foregoing disqualifiers apply only to the extent not formally and finally reversed. Pursuant to the USOPC Background Check Policy, any other convictions must be disclosed in advance of consideration for service as a director and may be considered in evaluations. The requirements above come in addition to, rather than superseding anything in, that policy.

Any misdemeanor, suspension, or ineligibility from a sport or sport organization for rules violations or otherwise must also be disclosed for similar consideration. Leaders have an ongoing duty to disclose throughout the period of their service. Leaders may be removed from service in any instance where they have violated applicable USOPC policies, subject to the terms of those policies. If a potential or existing leader is under investigation for, or has been formally accused of, any of the above infractions, that individual may be asked to suspend their candidacy or leadership role until the investigation or accusation has been adjudicated.

The Nominating and Governance Committee or their designee will receive disclosures and resolve questions and disputes in eligibility and the application of these qualifications for service. The committee may consult and confer with the Ethics and Compliance Committee on such matters as appropriate, particularly in cases that may impact the USOPC Code of Conduct or other ethics policies.

Section 3.8 Resignations/Vacancies/Removal. A director's position on the corporation Board may be declared vacant upon the resignation, removal, incapacity, disability, disqualification or death of a director. Any director may resign at any time by giving written notice to the Secretary of the corporation. Such resignation will take effect at the time specified therein, and unless otherwise specified therein, the acceptance of such resignation will not be necessary to make it effective. Directors will be removed by the corporation Board if they fail to attend in person more than one half of the regular meetings of the corporation Board during any 12-month period, unless they are able to demonstrate to the other members of the corporation Board that the presence of exigent circumstances caused and excused the absences. In such circumstances, the absent director can be removed by a vote of the majority of the voting power of the directors then in office (not including the voting power of the absent

director, who will not be eligible to vote on such matters). Directors may also be removed for cause at any duly noticed meeting of the corporation Board, and after being provided an opportunity for the corporation Board member to be heard by the corporation Board, upon the affirmative vote of at least two-thirds of the voting power of the directors then in office (excluding the voting power of the director in question). Directors may also be removed not for cause at any duly noticed meeting of the corporation Board upon the affirmative vote of at least three-fourths of the voting power of the directors then in office (excluding the voting power of the director in question). Any vacancy occurring in the corporation Board will be filled as set forth for the election of that member of the corporation Board. A director elected to fill a vacancy will be elected for the unexpired term of such director's predecessor in office. No director will be subject to removal based upon how they vote as a director, unless such voting is determined to be part of a violation of the Code of Conduct.

Section 3.9 The Chair.

Section 3.9.1 Duties. The Chair will:

- a) preside at all meetings of the directors;
- b) have primary responsibility for ensuring that the corporation Board carries out its responsibilities under these Bylaws and applicable laws;
- c) appoint, with approval of the corporation Board, corporation Board members to corporation Board committees as appropriate;
- d) work with the CEO on a cooperative basis as necessary to manage key international relationships (including, without limitation, by executing cooperation and other international agreements on behalf of the corporation as appropriate), with the allocation of international responsibilities between the CEO and the Chair to be determined by the corporation Board in the event of a conflict between the two;
- e) serve as required on commissions and other governance bodies of international sport organizations;
- f) serve as required on an *ex officio* basis on governance bodies of entities related to the USOPC;
- g) be referred to internationally as the President of the U.S. Olympic & Paralympic Committee; and
- h) have and may exercise such powers and perform such other duties as may be specified in these Bylaws and/or assigned from time to time by the corporation Board.

Section 3.9.2 Term. The Chair will be elected for a four-year term. Election of the Chair will be by majority vote of the voting power of the directors then in office. The Chair may serve a maximum of three four-year terms in total (i.e., the Chair may serve one additional four-year term in their category of director (as specified in Section 3.2 of these Bylaws) over and above the two-term general limit set out in Section 3.6.1 of these Bylaws) in each case subject to their re-election. The Chair will hold office until

the Chair's successor will have been duly elected and will have qualified, or until the Chair's earlier death, resignation, disability, disqualification, incapacity or removal.

If a director serves for longer than eight total years by virtue of being the Chair, and is subsequently removed from the Chair position, such director will, unless the corporation Board determines otherwise, complete their then current four-year term as a director.

Section 3.9.3 Compensation of the Chair. The Chair will not receive compensation for their services but will be reimbursed for reasonable expenses incurred in the course of performing their duties, subject to the expense reimbursement policies of the corporation.

Section 3.9.4 Removal. The corporation Board may remove the Chair (for cause or not for cause) from serving as the Chair of the corporation Board at any time prior to the expiration of the Chair's term as Chair. The Chair may be removed for cause by the affirmative vote of two-thirds of the voting power of the directors then in office (excluding the voting power of the Chair). The Chair may be removed not for cause by the affirmative vote of not less than three-fourths of the voting power of the directors then in office (excluding the voting power of the Chair). Removal from serving as Chair will not, in and of itself, constitute removal from the corporation Board. Selection to serve as the Chair or as a director will not in itself create any contract rights.

Section 3.9.5 Vice Chair. During their service as Chair, the Chair may but is not required to appoint one or more Vice Chairs to assist the Chair in their duties, subject always to a total limit of three. Any such Vice Chair appointments becomes effective upon ratification by the Board by majority vote. The Chair will assign in a writing made available to all Board members, to each Vice Chair so appointed and ratified, a specific area of responsibility and/or set of duties from among existing Chair duties. Except as so specifically assigned, no Vice Chair will have any other special rights or duties (individually or as a group) as against other members of the Board.

Section 3.10 Regular Meetings. Regular meetings of the corporation Board will be held in person and/or via video conference at the time and place determined by the corporation Board. The corporation Board will hold a minimum of four regular meetings per calendar year, but it may hold additional regular meetings. At least one regular meeting of the corporation Board will be held in association with the Olympic and Paralympic Assembly. Approved minutes of all regular corporation Board meetings will be published by the corporation on its publicly available website, generally within 60 days of the end of the subject meeting.

Section 3.11 Special Meetings. Special meetings of the corporation Board may be called by or at the request of the Chair or at the request of directors holding a majority of the voting power of the directors then in office. The Chair may fix any appropriate place and/or videoconference as the venue for any special meeting of the

corporation Board, but special meetings may also be held in accordance with Section 3.12 of these Bylaws. Approved minutes of all special corporation Board meetings will be published by the corporation on its publicly available website, generally within 60 days of the end of the subject meeting.

Section 3.12 Meetings by Telephone and Transacting Business by Other Means. Members of the corporation Board or any committee thereof may participate in a meeting of the corporation Board or committee by means of conference telephone or similar communications equipment by which all persons participating in the meeting can hear each other at the same time. Such participation will constitute presence in person at the meeting for purposes of a quorum and voting, but not for purposes of the attendance requirement in Section 3.8 of these Bylaws. The corporation Board will have the power to transact its business by electronic communication or telephone if in the judgment of the Chair the urgency of the case requires such action; but if directors holding at least one-third of the voting power of the directors then in office indicate their unwillingness to decide such a matter in such manner, the Chair must call a meeting of the corporation Board to determine the question at issue. Minutes of corporation Board meetings may in all instances be voted upon for approval via e-mail, but if directors holding at least one-third of the voting power of the directors then in office express concerns about the minutes, the vote will be delayed until the matter can be discussed at the next meeting of the corporation Board.

Section 3.13 Agenda. The agenda for a meeting of the corporation Board will be set by the Chair of the corporation Board, after consultation with the CEO. Any corporation Board member and the chairs of the NGBC, AAC, USOPA, and the Affiliate Organizations Council may request that items be placed on the corporation Board's agenda. Final corporation Board meeting agendas will be published by the corporation online.

Section 3.14 Notice. Notice of each meeting of the corporation Board, stating the place, day and hour of the meeting, along with the agenda and any supporting materials, will be given to each director at the director's business address (or such other address provided by the director for such purpose) at least five days prior thereto by the mailing of written notice by first class, certified or registered mail, or at least two days prior thereto by personal delivery of written notice or by telephonic or electronically transmitted notice (and the method of notice need not be the same as to each director). If mailed, such notice will be deemed to be given when deposited in the United States mail, with postage thereon prepaid. If transmitted by electronic transmission, such notice will be deemed to be given when the transmission is received. Any director may waive notice of any meeting before, at or after such meeting. The attendance of a director at a meeting will constitute a waiver of notice of such meeting, except where a director attends a meeting for the express purpose of objecting to the transaction of any business because the meeting is not lawfully called or convened. Neither the business to be transacted at, nor the purpose of, any meeting of the corporation Board need be specified in the notice or waiver of notice of such meeting unless otherwise required by

statute.

Section 3.15 Presumption of Assent. A director of the corporation who is present at a meeting of the corporation Board at which action on any corporate matter is taken will be presumed to have assented to the action taken unless such director's dissent will be entered in the minutes of the meeting or unless the director will file a written dissent to such action with the person acting as the Secretary of the corporation Board before the adjournment thereof or will forward such dissent by registered mail to the Secretary of the corporation Board immediately after the adjournment of the meeting. Such right to dissent will not apply to a director who voted in favor of such action.

Section 3.16 Quorum and Proxies. A simple majority of the voting power of the directors then in office will constitute a quorum for the transaction of business at any meeting of the corporation Board, and the vote of a majority of a quorum will be the act of the corporation Board. If less than a quorum is present at a meeting, a majority of the directors present may adjourn the meeting from time to time without further notice other than an announcement at the meeting, until a quorum will be present.

No director may vote or act by proxy at any meeting of directors.

Section 3.17 Action Without a Meeting. Any action required or permitted to be taken at a meeting of the directors or any committee thereof may be taken without a meeting if a consent in writing, setting forth the action so taken, will be signed by directors or committee members (as applicable) representing at least two-thirds of the voting power of the directors or committee members then in office and entitled to vote with respect to the subject matter thereof. Such consent (which may be signed in counterparts) will have the same force and effect as a vote of the directors or committee members. In the event of a conflict between this Section and Section 3.12 of these Bylaws, the provisions of Section 3.12 will control.

Section 3.18 Compensation. Directors will not receive compensation for their services as such, although the reasonable expenses of directors may be paid or reimbursed in accordance with the policies of the corporation. Directors will not be disqualified to receive reasonable compensation for services rendered to or for the benefit of the corporation in any other capacity, provided that the rendering of such services and such compensation are approved by the Ethics and Compliance Committee or corporation Board policies.

Section 3.19 Effectiveness of Actions. Actions taken at a meeting of the corporation Board will become effective immediately following the adjournment of the meeting, except as otherwise provided in the Bylaws or when a definite effective date is recited in the record of the action taken.

Section 3.20 Questions of Order and Corporation Board Meeting Leadership. Questions of order will be decided by the Chair. The Chair will lead meetings of the

corporation Board. If the Chair is absent from any meeting of the corporation Board, then the Chair will designate in writing in advance one other member of the corporation Board to preside. If the Chair is unable to make or has not made such a designation, the corporation Board may, by majority vote, choose another member of the corporation Board to serve as presiding officer for that meeting.

Section 3.21 Delegation Event Participation. Any motion before the corporation Board that would seek to prevent the corporation from participating in a Delegation Event, or that would not allow the team representing the United States to participate in a Delegation Event, or any motion having the same effect as the above, will require that at least three-fourths of the voting power of the directors then in office vote in favor of such a motion.

Section 3.22 Submission of Specific Delegation Event Issues to Further Review. In the event that the corporation Board votes, in accordance with the provisions of Section 3.21 of these Bylaws, to prevent or not allow the corporation or the team representing the United States to participate in a Delegation Event or to take any action having that effect, the corporation Board must submit the issue to a vote of (a) the members of the corporation Board, (b) the members of the NGBC, and (c) the members of the AAC, with each member having one vote. The issue must be noticed a reasonable time before a meeting of that collection of individuals, pursuant to procedures established by the corporation Board, and for the motion to have any effect it must be approved by that collection of individuals by a three-fourths vote of the individuals present, with each individual having one vote. If there are other issues as to which the corporation Board decides, by a vote of a majority of the voting power of the directors then in office, that it should secure guidance or a broad United States Olympic and Paralympic community consensus, it may submit those issues to the above-referenced collection of individuals for review, comment or approval of action proposed by the corporation Board. If the corporation Board does decide to refer any additional issues to the above-referenced group, the procedure and vote required for approval should be specified by the corporation Board.

Section 3.23 Vote of Retention After Four Years. If a director has been elected to and served four years, they may choose to stand for a vote of retention. The corporation Board will vote as to whether an independent director will be so retained to serve another four years of service or whether that director position will be opened to be filled by a new director. Constituent Board representatives will be voted upon by their constituent body according to the election procedures established by that body and approved by the corporation Board.

SECTION 4

OFFICERS

Section 4.1 Number and Qualifications. The officers of the corporation will be the CEO, Secretary and Treasurer. All such officers are subject to the qualifications criteria and resolution process set out in Section 3.7 of these Bylaws.

Section 4.2 Selection/Appointment. The officers of the corporation will be selected or appointed and their terms will be as set out below.

Section 4.2.1 CEO. The CEO will be the corporation's chief executive officer and will be an officer of the corporation for so long as they are employed as the CEO of the corporation.

Section 4.2.2 Secretary and Treasurer. The corporation's general counsel will be the Secretary and the corporation's chief financial officer will be the Treasurer. In any circumstance in which the CEO has not designated an employee to serve as general counsel or chief financial officer, the corporation Board may select a corporation Board member or another individual employed by the corporation to serve as Secretary or Treasurer until a new Secretary or Treasurer is designated by the CEO. The term of the Secretary and Treasurer will end automatically when their employment by the corporation ends or when that person is no longer able to serve. If either the general counsel or chief financial officer's position is vacant, or if either the general counsel or chief financial officer is otherwise unable to serve, then the CEO may designate another appropriate employee of the corporation to fill that position.

Section 4.3 Vacancies. The CEO, the Secretary and the Treasurer may resign at any time from their positions as officers and employees of the corporation by giving written notice to the Chair and the other members of the corporation Board. An officer's resignation will take effect at the time specified in such notice, and unless otherwise specified therein, the acceptance of such resignation will not be necessary to make it effective.

A vacancy in the office of CEO, however occurring, will be filled as determined by the corporation Board. A vacancy in the office of Secretary or Treasurer will be filled by the CEO in accordance with Section 4.2.2 of these Bylaws.

Section 4.4 Authority and Duties of Officers. The officers of the corporation will have the authority and will exercise the powers and perform the duties specified in this Section 4 and as may be additionally specified by the corporation Board or these Bylaws, except that in any event each officer will exercise such powers and perform such duties as may be required by law.

Section 4.4.1 CEO. The CEO will perform such duties and functions as are specified in Section 6 of these Bylaws.

Section 4.4.2 Secretary. The Secretary will:

- a) keep the minutes of the proceedings of the corporation Board;
- b) see that all notices are duly given in accordance with the provisions of these Bylaws or as required by law;
- c) maintain a list of Board members and Board committee members and their terms of service;
- d) be custodian of the corporate records and of the seal of the corporation; and
- e) in general, perform all duties incident to the office of Secretary and such other duties as from time to time may be assigned to the Secretary by the CEO or the corporation Board.

Section 4.4.3 Treasurer. The Treasurer will:

- a) have general oversight of the financial affairs of the corporation;
- b) present financial reports to the corporation Board as the corporation Board may request from time to time; and
- c) in general, perform all duties incident to the office of Treasurer and such other duties as from time to time may be assigned to the Treasurer by the CEO or the corporation Board.

Section 4.5 Due Care. Officers will perform their functions with due care. No person may serve simultaneously as an officer of the corporation and as an officer of an organization holding membership in the corporation.

SECTION 5

COMMITTEES AND TASK FORCES

Section 5.1 Standing Committees. The corporation will have the following committees: Athlete and NGB Services; Compensation; Ethics and Compliance; Finance, Audit, and Risk; NGB Oversight and Compliance; and Nominating and Governance. The Chair will be entitled to attend meetings of all committees and receive copies of all committee correspondence but will not be entitled to a vote on said committees. The delegation of authority to any committee will not operate to relieve the corporation Board or any member of the corporation Board or the CEO from any responsibility imposed by law. Rules governing procedures for meetings of any committee of the corporation Board will be as set forth in these Bylaws or as established by the corporation Board or, in the absence thereof, by the committee itself. All members of such committees are subject to the qualifications criteria and resolution process set out in Section 3.7 of these Bylaws. Committee members will not receive compensation for their services as such, although the reasonable expenses of committee members may be paid or reimbursed in accordance with the policies of the corporation.

Section 5.2 Other Committees and Task Forces. The Chair may determine that additional committees or task forces, and the CEO may determine that additional task forces, are necessary to assist them in performing their respective functions and obligations and they may appoint such committees or task forces as they deem appropriate and will establish such procedures, guidelines, and oversight of such committees and task forces as they deem necessary to ensure that those committees and task forces are accountable for their performance.

Section 5.3 General Corporation Board Committee Powers/Requirements. Each corporation Board committee will have the authority to delegate any of its responsibilities to a subcommittee or to an individual member of the committee as the corporation Board committee may deem appropriate in its discretion, subject to review and oversight by the corporation Board. Each corporation Board committee will have the authority to retain such consultants, outside counsel and other advisors as the corporation Board committee may deem appropriate in its sole discretion, consistent with the policies, budgets, and controls established by the corporation Board. The corporation Board committee in question will have the authority to approve related fees and retention terms unless specifically restricted by the corporation Board or restricted by policies established by the corporation Board.

Each corporation Board committee will keep and maintain minutes and records of attendance for its meetings, report its actions and any recommendations and the attendance of its membership to the corporation Board after each committee meeting, and conduct and present to the corporation Board an annual performance evaluation of the corporation Board committee. Each corporation Board committee will review at

least annually the adequacy of its charter and will recommend any proposed changes to the corporation Board for review and consideration. Consistent with the other terms of this Section 5, Board committees will always include 10 Year Athletes making up at least 20%, and athlete-elected or appointed representatives making up at least 33.3% of their overall membership.

Section 5.4 Vacancies. Notwithstanding any provision herein to the contrary, committee members (whether members of the corporation Board or not) will hold office until such committee member's successor will have been appointed or until such committee member's earlier death, disability, resignation, disqualification, incapacity or removal. In addition, the corporation Board may, from time to time, determine to rotate USOPC corporation Board members on to and off of committees. Where a non USOPC corporation Board member Committee member is subject to a four-year-term, two-term limit under this Section 5, that committee member's replacement or appointment to a second term will be conducted by the same means as their first term.

Section 5.5 Resignation and Removal. The absence of any committee member, without adequate excuse, from two or more consecutive meetings may be construed as their resignation from such committee by a majority vote of the corporation Board. Members of any committee may be removed, for cause or not for cause, upon the majority vote of the corporation Board, after the member has been provided an opportunity to be heard by the corporation Board.

Section 5.6 Athlete and NGB Services Committee. The Athlete and NGB Services Committee (the "ANSC") will be comprised in accordance with, governed pursuant to, and perform those duties as contained in those sections set forth below.

Section 5.6.1 Appointment and Composition. The ANSC will consist of eight members. The Chair will appoint, with approval of the corporation Board, three members of the committee, one of which will be an independent corporation Board member, one of which will be an AAC representative on the corporation Board, and one will be an NGBC representative on the corporation Board. The independent corporation Board member so appointed to the committee will serve as the chair of the Committee. Two committee members will serve *ex officio* as follows: One member will be the chair of the NGBC or their designee from among the members of the NGBC; one will be the chair of the Athletes Advisory Council or their designee from among AAC members and alternates. An At Large Athlete representative committee member will be appointed by a nominating group operated jointly between the AAC and USOPA as set out in the USOPC Board Elections Policy. These last three members will be people who are not currently serving any direct corporation Board or employment role with the corporation. The two remaining committee members will be at-large members appointed by the Nominating and Governance Committee from among individuals not currently serving any direct corporation Board or employment role with the corporation.

The two AAC representatives on the committee will be USOPC 10 Year Athletes (provided that if they are members of the AAC, the applicable time period is the 10 years preceding when they started serving in that role) and the At Large Athlete representative will be a USOPC 10 Year+ Athlete.

Section 5.6.2 Term/Term Limit. A corporation Board member may serve on the ANSC until their term as a director expires. All other members may serve an initial term of four years and will be eligible for a second four-year term; such members will not be eligible to serve for more than two terms.

Section 5.6.3 Responsibilities. The purpose of the ANSC will be to assist the corporation Board in its oversight of:

- i. corporation support of and engagement with athletes generally and the AAC specifically;
- ii. corporation support of and engagement with NGBs generally and the NGBC specifically;
- iii. Affiliate Organization issues generally and the AOC specifically;
- iv. the USOPC Office of Athlete Ombuds and its work;
- v. athlete safety issues generally and the corporation's relationship with the USCSS specifically; and
- vi. anti-doping matters generally and the corporation's relationship with USADA specifically.

In light of these responsibilities, the ANSC will exercise oversight as follows:

- a) the Athlete Ombuds will report directly to and be supervised by the Committee;
- b) the corporation Athlete Safety, NGB support and athlete support teams will each provide the committee with updates on a regular basis and generally seek guidance from the committee;
- c) the committee will receive periodic updates from representatives of USADA and the USCSS;
- d) the committee will conduct such other activities as may be requested or assigned by the corporation Board or as set forth in these Bylaws.

Section 5.6.4 Meetings. The ANSC will meet at least four times a year. The committee will meet periodically in executive session without management present. The committee may invite such members of management, corporate employees, individuals associated with the corporation's independent auditors or outside legal counsel, or others to its meetings as it deems desirable or appropriate.

Section 5.7 Compensation Committee. The Compensation Committee will be comprised in accordance with, governed pursuant to, and perform those duties as contained in this section 5.7.

Section 5.7.1 Appointment and Composition. The Chair will appoint the members of the Compensation Committee and its chair, with approval of the corporation Board. The committee will consist of at least three and not more than six members, all of whom will be members of the corporation Board. The committee will include at least two members who are AAC or At-Large Athlete representatives and at least 20% of members will be USOPC 10 Year Athletes and at least 13.3% will be USOPC 10 Year or USOPC 10 Year+ Athletes.

Section 5.7.2 Term. Each member may serve until their term as a director expires.

Section 5.7.3 Responsibilities. The purpose of the Compensation Committee will be to carry out the corporation Board's overall responsibility relating to compensation, benefits, human capital management, and organizational health, including diversity, equity, and inclusion.

The responsibilities of the Compensation Committee will be as follows:

- a) to assist the corporation Board in developing and evaluating potential candidates for the CEO position;
- b) to oversee the development of executive succession plans;
- c) to annually review and approve corporation strategic objectives and measurements for purposes of corporation compensation plans and to make recommendations to the Board as appropriate.
- d) to review the performance of the CEO at least annually in relation to the organization's achievement of strategic goals, and recommend for Board approval the CEO's annual compensation (including salary, bonus and incentive compensation, and any other compensation) based on such performance, to consult with the Board on this work and secure appropriate Board approvals of these, and to communicate performance feedback to the CEO in conjunction with the Chair;
- e) to annually review and monitor progress of the corporation diversity, equity, and inclusion strategy, annual plan, and any policies related to these;
- f) to annually review and approve the evaluation process and compensation structure for the corporation's executive team reporting directly to the CEO including a review with the CEO of their performance, and also review and provide oversight of management's decisions concerning the performance and compensation of other corporation executives;
- g) to review the corporation's programs concerning benefits, retirement plans and contributions thereto, and all other forms of benefits and perquisites offered to the corporation's employees;
- h) to review the corporation's incentive compensation and other

- compensation plans and recommend changes to such plans as necessary (the committee will have and will exercise the authority of the corporation Board with respect to the oversight of such plans);
- i) to conduct periodic review of the reasonableness of the compensation of the corporation's executives using relevant market benchmarks and survey data;
 - j) to maintain regular contact with the CEO and/or their designees about compensation issues;
 - k) to prepare and follow an annual work plan and report to the corporation Board on its activities in the form of an oral report by the chair of the committee or any other member of the committee designated by the chair of the Committee to make such report;
 - l) to conduct such other activities as may be requested or assigned by the corporation Board or as set forth in these Bylaws;
 - m) to manage the initiation and communication of the CEO's employment contract terms and renewal, subject to corporation Board approval; and
 - n) to review its Charter at least annually and recommend any proposed changes to the corporation Board for its approval.

Section 5.7.4 Meetings. The Compensation Committee will meet at least two times annually, or more frequently as circumstances dictate. The committee will meet regularly in executive session, without corporation management present. The committee may invite to its meetings any director or employee of the corporation and such other persons as it deems appropriate to carry out its responsibilities. A member of the corporation's management will not, however, be present at any discussion or review where their performance or compensation is being determined.

The chair of the committee will chair all meetings of the committee, and, in consultation with the Chair and the CEO, set the agendas for committee meetings. Members of the corporation Board may suggest to the chair of the committee items for consideration by the committee.

Section 5.8 Ethics and Compliance Committee. The Ethics and Compliance Committee will be comprised in accordance with, governed pursuant to and perform those duties as contained in this section 5.8.

Section 5.8.1 Appointment and Composition. The Nominating and Governance Committee will appoint the members of the Ethics and Compliance Committee other than its chair. The committee will consist of up to six members. The chair of the committee will be a member of the corporation Board, appointed by the Chair with approval of the corporation Board.

The members of the committee, other than its chair, will not be members of the corporation Board and must satisfy the standards of independence for "independent directors" as set forth in Section 3.4 of these Bylaws. At least two members of the

committee will be USOPC 10 Year or USOPC 10 Year+ Athletes appointed by the Nominating and Governance Committee after consultation with the AAC and USOPA; and at least 20% of the Committee membership will be made up of USOPC 10 Year Athletes and 13.3% will be USOPC 10 Year or 10 Year+ Athletes.

Section 5.8.2 Term. Other than its chair, who may serve until their term as a director expires, each member of the Ethics and Compliance Committee will serve for an initial term of four years. At the end of each member's initial term, they will be eligible for a second four year term if so determined by the Nominating and Governance Committee. The members of the committee, excluding the chair, will have staggered terms.

Section 5.8.3 Responsibilities. The responsibilities of the Ethics and Compliance Committee will be as follows:

- a) to develop, administer and oversee compliance with the Code of Conduct and other ethics-related USOPC policies;
- b) to recommend, for corporation Board consideration, proposed revisions to such policies;
- c) to review the handling of ethics-related complaints by ethics staff and/or handle directly such complaints, and in any case to handle directly such complaints where directed by the corporation Board;
- d) to review the handling of internal compliance matters by internal compliance staff;
- e) to conduct such other activities as may be requested or assigned by the corporation Board or as set forth in these Bylaws.

Section 5.8.4 Meetings. The committee will meet at least two times annually, or more frequently as circumstances dictate.

Section 5.9 Finance, Audit, and Risk Committee. The Finance, Audit, and Risk Committee ("FAR Committee") will be comprised in accordance with, governed pursuant to and perform those duties as contained in those sections set forth below.

Section 5.9.1 Appointment and Composition. The Chair will appoint the members of the FAR Committee and its chair, with approval of the corporation Board. The committee will consist of at least three and not more than six members, all of whom will be members of the corporation Board.

The committee will include at least two members who are AAC or At-Large Athlete representatives; and at least 20% of the committee members will be USOPC 10 Year Athletes and at least 13.3% will be USOPC 10 Year or USOPC 10 Year+ Athletes. All members of the committee must be financially literate and at least one member must have accounting or financial management expertise.

Section 5.9.2 Term. Each FAR Committee member may serve until their term as a director expires.

Section 5.9.3 Responsibilities. The purpose of the FAR Committee will be to assist the corporation Board in its oversight of:

- a) the integrity of the financial statements of the corporation;
- b) the corporation's compliance with legal and regulatory requirements relating to corporation finances and reporting thereof;
- c) the corporation's risk management function and efforts;
- d) the independence and qualifications of the independent auditor; and
- e) the performance of the corporation's internal audit function and independent auditors.

Additionally, the committee will perform those duties normally performed by a finance committee.

The responsibilities of the FAR Committee will include the following:

- a) to discuss with management the annual audited financial statements and quarterly financial statements including matters required to be reviewed under applicable legal, regulatory or other requirements;
- b) to approve the corporation's financial statements prior to publication;
- c) to discuss with management and the independent auditor, as appropriate, press releases containing financial information and financial information provided to the public;
- d) to select the independent auditor to examine the corporation's accounts, controls and financial statements (the committee will have the sole authority to approve all audit engagement fees and terms and the committee must pre-approve any non-audit service provided to the corporation by the corporation's independent auditor);
- e) to discuss with management and the independent auditor, as appropriate, any audit problems or difficulties and management's response, and the corporation's risk assessment and risk management policies, including the corporation's major financial risk exposure and steps taken by management to monitor and mitigate such exposure;
- f) to review the corporation's financial reporting and accounting standards and principles, significant changes in such standards or principles or in their application and the key accounting decisions affecting the corporation's financial statements, including alternatives to, and the rationale for, the decisions made;
- g) to review and approve the internal audit staff functions, including (i) purpose, authority and organizational reporting lines and (ii) annual audit plan, budget and staffing;
- h) to review and approve of the appointment and compensation of any Director

- of Internal Audit, who will report functionally to the Committee and operationally to the CEO or their designee;
- i) to review, with the CEO, Chief Financial Officer, Director of Internal Audit, General Counsel, independent auditors, and/or others, as the committee deems appropriate, the corporation's internal system of audit and financial controls and the results of internal and independent audits;
 - j) to periodically review with the independent auditor the qualifications and performance of the corporation's finance personnel as observed by the independent auditor;
 - k) to establish practices or procedures alone or in conjunction with the CEO and or the Ethics and Compliance Committee as appropriate, providing effective mechanisms for employees and others to make complaints relating to accounting practices, internal accounting controls, or audit matters, with provisions for confidential anonymous submission by employees and others (the committee will be provided with an analysis of all financial, accounting and audit related complaints and their disposition, and will provide safeguards against retaliation against employees and others who make such complaints);
 - l) to obtain and review at least annually a formal written report from the independent auditor delineating (i) the auditing firm's internal quality-control procedures and (ii) any material issues raised within the preceding five years by the auditing firm's internal quality-control reviews, by peer reviews of the firm, or by any governmental or other inquiry or investigation relating to any audit conducted by the firm (the committee will also review steps taken by the auditing firm to address any findings in any of the foregoing reviews and will also review with the independent auditor any significant lawsuits or criminal action alleged against the independent audit firm and the impact, if any, of such suits on the viability of the independent audit firm);
 - m) to conduct such other activities as may be requested or assigned by the corporation Board or as set forth in these Bylaws.

Section 5.9.4 Meetings. The FAR Committee will meet at least three times a year with management and with the Internal Auditor, and at least annually with the corporation's independent auditors. The committee will meet periodically in executive session without management present. The committee may invite such members of management, corporate employees, individuals associated with the corporation's independent auditors or outside legal counsel, or others to its meetings as it deems desirable or appropriate.

Section 5.9.5 Expert Advisors. Without limiting anything in Section 5.3 above, the FAR Committee chair may name up to three "Committee Advisors" to serve the committee at any time. The first of any such Committee Advisors will be a U.S. Olympic Endowment 10 Year or 10 Year+ Athlete representative chosen by the committee chair in consultation with the United States Olympic Endowment ("USOE") chair. Any second and/or third Committee Advisors will be USOPF Board members or Trustees, chosen by

the committee chair in consultation with the USOPF chair. All Committee Advisors must be individuals with significant financial experience and expertise. Committee Advisors may attend committee meetings and review committee materials and consult with the committee on its work but will have no direct vote or other committee member rights or obligations. Committee Advisor participation in committee meetings will always be noted in committee meeting minutes. Committee Advisors will have no formal term but may serve only while also serving their applicable USOE or USOPF role noted above. Prior to beginning service, each Committee Advisor must execute a USOPC non-disclosure agreement governing their work with the committee and be confirmed by the Nominating and Governance Committee as qualified for a USOPC leadership role under Section 3.7.

Section 5.10 NGB Oversight and Compliance Committee. The NGB Oversight and Compliance Committee (“NGBOCC”) will be comprised in accordance with, governed pursuant to, and perform those duties as contained in those sections set forth below.

Section 5.10.1 Appointment and Composition. The NGBOCC will consist of seven members. The Chair will appoint, with approval of the corporation Board, three members of the committee, one of which will be an independent corporation Board member, one of which will be an AAC representative on the corporation Board, and one will be an NGBC representative on the corporation Board. The independent corporation Board member so appointed to the committee will serve as the chair of the committee.

Two committee members will serve *ex officio* as follows: One member will be the chair of the NGBC or their designee from among NGBC members; one will be the chair of the Athletes Advisory Council or their designee from among AAC members and alternates. An At Large Athlete representative committee member will be appointed by a nominating group operated jointly between the AAC and USOPA as set out in the USOPC Board Elections Policy. These three committee members will be people who are not currently serving any direct Board or employment role with the corporation. The two AAC representatives on the committee will be USOPC 10 Year Athletes and the At Large Athlete representative will be a USOPC 10 Year+ Athlete.

The final committee member will be an at-large member appointed by the Nominating and Governance Committee from among individuals not currently serving any direct corporation Board or employment role with the corporation. In seating the at-large Committee member, the Nominating and Governance Committee will seek candidates with significant organizational compliance and/or Olympic/Paralympic entity governance experience.

Section 5.10.2 Term/Term Limit. A corporation Board NGBOCC member may serve until their term as a director expires. All other members may serve an initial term of four years, and will be eligible for a second four-year term; such members will not be eligible to serve for more than two terms. Non-corporation Board members of the committee will have staggered terms.

Section 5.10.3 Responsibilities. The purpose of the NGB OCC will be to assist the corporation Board in its oversight of:

- a) corporation oversight of NGBs generally and NGB certification and compliance issues under Bylaw Section 8 specifically;
- b) the NGBs' compliance with the Act, these Bylaws and with agreements with the USOPC;
- c) NGB certification renewals;
- d) the corporation's own management of a sport in cases where there is no certified NGB in that sport (e.g., as to the corporation's internally managed NGBs); and
- e) The corporation's dispute resolution procedures generally and those conducted in connection with Bylaw sections 9, 10, and 11 specifically.

In light of these responsibilities, the NGB OCC will exercise oversight as follows:

- a) the corporation's Chief Ethics and Compliance Officer will provide the committee with updates on a regular basis and generally seek guidance from the committee;
- b) the corporation's dispute resolution team will provide the committee with updates on a regular basis and generally seek guidance from the committee;
- c) the committee will receive copies of all NGB audits and review, as requested by USOPC staff or determined by the committee itself, those issues identified as having a material effect on an NGB's ability to (i) adhere to the conditions specified in the Act or these Bylaws, or (ii) continue to be certified and recognized as an NGB;
- d) in connection with all audits of NGBs operated by the corporation itself, the Director of NGB Audit will report functionally to the committee and operationally to the CEO or their designee;
- e) the Certification Review Group, led by the Chief Ethics and Compliance Officer, will provide reports and recommendations to the committee on a regular basis and generally seek guidance from the Committee, and the committee may instruct the initiation of a decertification proceeding under Section 8 of these Bylaws;
- f) the Certification Review Group will offer formal NGB certification renewal recommendations to the committee for ratification and recommendation to the corporation Board, and the committee may accept, reject, or modify such recommended actions including by adding conditions to certification renewal;
- g) the committee will conduct such other activities as may be requested or assigned by the corporation Board or as set forth in these Bylaws.

Section 5.10.4 Meetings. The NGB OCC will meet at least four times a year. The committee will meet periodically in executive session without management present. The committee may invite such members of management, corporate employees,

individuals associated with the corporation's independent auditors or outside legal counsel, or others to its meetings as it deems desirable or appropriate.

Section 5.11 Nominating and Governance Committee. The Nominating and Governance Committee ("NGC") will be comprised in accordance with, governed pursuant to, and perform those duties as contained in this section 5.11.

Section 5.11.1 Appointment and Composition. The NGC will consist of five members.³ The Chair will appoint, with approval of the corporation Board, two corporation Board members who are not members of the IOC and who are not eligible for re-election to the corporation Board to serve on the committee, one of which will be its chair. The remaining members of the committee will be selected one each by the NGBC the AAC, and an At Large Athlete representative committee member appointed by a nominating group operated jointly between the AAC and USOPA as set out in the USOPC Board Elections Policy, all from individuals not currently serving any direct Board or employment role with the corporation. The AAC representative on the committee will be a USOPC 10 Year Athlete; the At Large Athlete representative on the committee will be a USOPC 10 Year+ Athlete.

Section 5.11.2 Term. Each member of the NGC will serve for an initial term of four years. At the end of each member's initial term, they will be eligible for a second four-year term if so determined by the body appointing them under the terms of these Bylaws. The members of the committee, excluding the chair, will have staggered terms.

Section 5.11.3 Responsibilities. The responsibilities of the NGC will include the following:

- a) to lead the search for individuals qualified to become independent members of the corporation Board and to recommend potential directors qualified under the terms of these Bylaws and the director criteria referred to in Section 5.11.3(c) hereof for consideration by the corporation Board (the committee will recommend individuals to serve as directors who have the highest personal and professional integrity, who have demonstrated exceptional ability and judgment, and who will be most effective, in conjunction with the other nominees to the corporation Board, in collectively serving the long-term interests of the corporation) and to recommend for election appropriate individuals with each such individual recommendation to be accompanied by a written description of the qualifications, skills and experiences of each individual so identified;
- b) to confer with and provide support and guidance as appropriate to the

³ PLEASE NOTE: Notwithstanding the language in this Section 5.11.1, a sixth member is serving on the NGC as of the effective date of these Bylaws. That committee member, originally appointed by the then-Multisport Organizations Council, may continue to serve the balance of their term under the terms of these Bylaws; at the end of such continued service, that sixth committee seat will automatically terminate.

- AAC, NGBC, and USOPA in their nominating processes and (for the AAC and NGBC) elections of corporation Board members;
- c) to develop (including in consultation with the AAC and NGBC) and appropriately disseminate a set of consistent written director criteria for all corporation Board seats, taking into consideration the needs of the corporation and the categories of corporation Board seat(s);
 - d) in recommending candidates for the corporation Board to vote on as potential new corporation Board members, in providing support to other bodies in their election process for corporation Board members, and in making or supporting Board committee appointments, to endeavor to achieve diversity and balance in corporation Board and Board committee members' skills, experience, and qualifications, including by taking into account these characteristics of then-current corporation Board members, and to endeavor to ensure that corporation Board and Board committee membership includes appropriate leadership experience within, or other substantial experience with, Paralympic sport in the United States, and at least two directors on the corporation Board who competed in the Olympic Games or Paralympic Games at some time during their lives;
 - e) to work with the Chair and CEO and their designees to develop and implement an appropriate training program for new directors and continuing education of existing directors, including a set of required training elements for all directors and additional, optional training elements for directors who seek them, and to support and track each director's participation in such training;
 - f) to develop and conduct a recurring corporation Board member evaluation process applicable to all USOPC corporation Board members, including by reference to the consistent director criteria referred to above, and to report process results as appropriate;
 - g) to report to the corporation Board of Directors on its activities (the report to the corporation Board of Directors may take the form of an oral report by the chair of the committee or any other member of the Committee designated by the chair of the committee to make such report);
 - h) to conduct such other activities as may be requested or assigned by the corporation Board or as set forth in these Bylaws.

SECTION 6

THE CEO

Section 6.1 Employment. There will be a CEO of the corporation, who will report to the corporation Board. Internationally, the CEO may also be referred to as the Secretary General of the corporation. The CEO will be employed by the corporation Board for whatever term the corporation Board deems appropriate and may be removed at any time for or not for cause by the corporation Board without prejudice to the CEO's contract rights, if any, and the contract of employment between the corporation and the CEO, if any, will provide that the CEO's employment may be terminated by the corporation Board for cause or not for cause.

Section 6.2 Management Responsibilities. The CEO will either directly or by delegation, manage all staff functions; determine the size and compensation of, hire and terminate the professional staff in accordance with the corporation's compensation policies and guidelines established by the Compensation Committee and/or the corporation Board; develop a strategy for achieving the mission, goals and objectives of the corporation as established by, and consistent with the policies of the corporation Board; be responsible for resource generation and allocation; manage key government relationships and coordinate government relations activities; work collaboratively with the Chair to manage key international relationships, with the allocation of international responsibilities between the CEO and the Chair to be determined by the corporation Board in the event of a conflict between the two; coordinate the international relations activities of the corporation; act as the corporation's spokesperson; be primarily responsible for coordinating the corporation's communications on all issues, subject to communication policies established by the corporation Board; prepare and submit quadrennial and annual budgets to the corporation Board; oversee the activities of all task forces the CEO appoints; and perform such other functions as usually pertain to that office. The CEO will implement the policies established by the corporation Board and report to the corporation Board concerning the results achieved.

Section 6.3 Official Notices. All official notices intended for the corporation or its corporation Board, or any of its committees or task forces, may be addressed in care of the CEO or any member of management designated by the CEO, who will be responsible for proper attention thereto.

Section 6.4 Service. The CEO will devote their entire time and service to the affairs of the corporation and will not engage in any other profession or employment (other than reasonable appropriate membership on boards of directors of other organizations as approved by the Ethics and Compliance Committee and the corporation Board). The CEO will receive such salary, benefits and other perquisites as will be set forth in the CEO's contract of employment with the corporation, if any, or as otherwise determined by the corporation Board or the Compensation Committee.

SECTION 7

THE OLYMPIC AND PARALYMPIC ASSEMBLY

Section 7.1 Purpose and Attendance. Once each year, in association with a regularly scheduled corporation Board meeting, the corporation will hold an Olympic and Paralympic Assembly. The purpose of the Assembly will be to facilitate communication between and among the corporation, the corporation Board, the corporation's members and other constituents. Representatives of all members of the corporation and the members of the AAC may choose to attend the Olympic and Paralympic Assembly as well as such others as the corporation Board determines may attend. The corporation Board will determine the parameters for attendance at the Olympic and Paralympic Assembly, including but not limited to determining a limit on the number of attendees and the amount of travel expenses, if any, that the corporation will pay, associated with the attendance of individuals at the Olympic and Paralympic Assembly.

Section 7.2 Development of Assembly Content and Format. The CEO will convene an Assembly Advisory Committee to provide advice and input regarding the Assembly format, sessions and content. The Assembly Advisory Committee will consist of a representative from the corporation Board, one representative each appointed by the NGBC, the AAC, USOPA, and the AOC, and such other individuals as the CEO may determine in their discretion. The Assembly Advisory Committee will meet telephonically as and when deemed appropriate by the CEO, and the CEO will, in good faith, consider all recommendations made by the Assembly Advisory Committee prior to making any Assembly-related recommendations to the corporation Board. The purpose of the work of the Assembly Advisory Committee will be to ensure that the Assembly is designed so as to facilitate communication between and among the corporation Board, the CEO and senior management of the corporation, the three councils and their members, and other members of the Olympic and Paralympic community; and to advance the mission of the corporation. The corporation Board will ultimately decide the time, place, and format of the Olympic and Paralympic Assembly based upon the recommendation of the CEO.

Section 7.3 Information to Assembly Attendees. The corporation Board, in conjunction with the CEO, will provide information to the attendees at the Olympic and Paralympic Assembly on the affairs of the corporation, which will include information on the performance of the organization, the financial performance and well-being of the corporation, preparations for Delegation Events, achievement of the corporation's mission, and actions taken, results achieved, and programs being implemented by the corporation, or such other matters as are determined by the corporation Board and/or CEO to be included.

Section 7.4 Communications with the Corporation Board. At the Olympic and

Paralympic Assembly attendees will have an opportunity to provide information and to communicate with the corporation Board and the CEO concerning the performance, policies and other matters related to the corporation. Such input will be advisory in nature and will not be deemed to direct the corporation Board or the CEO to take or not take any particular action. The Olympic and Paralympic Assembly will not conduct or perform any governance functions.

Section 7.5 Corporation Board and Council Meetings. The corporation Board, NGBC, AAC, USOPA, and AOC will each also meet in association with the Olympic and Paralympic Assembly in the same geographic location.

SECTION 8

MEMBERS

Section 8.1 Corporation Board Authority. The corporation Board has the power to elect properly qualified organizations to membership in each of the categories of membership listed in this Section 8, to transfer a member organization from one membership category to another and to terminate a member organization's membership. The corporation Board will specify the date upon which the rights and duties of new and transferred members will become effective. If no date is specified, such rights and duties will become effective immediately.

Also, the corporation Board has the power to certify qualified members as NGBs, to renew such certifications according to policies and procedures it may approve from time to time, and to review all matters relating to the continued certification of an NGB. In that regard, the corporation Board may take such action as it considers appropriate, including, but not limited to, placing conditions upon the continued certification of an NGB, placing an NGB on probation, suspending an NGB or decertifying an NGB, provided that notice of any such proposed action will be given to the NGB.

Section 8.2 General Membership Requirements. Organizations eligible for membership will be those that qualify for a category listed in Section 8.3 below. Organizations that are purely commercial or political in character are not eligible for membership. An NGB, with the approval of the corporation, may govern more than one qualifying sport.

Section 8.3 Membership Categories.

Section 8.3.1 Olympic Sport Organizations. Eligibility for membership as an Olympic Sport Organization will be limited to those Amateur Sports Organizations that are recognized and certified by the corporation as the NGBs for sports that have competed on the program of the Olympic Games or competed in medal sports in the immediate past Olympic Games. The term "sports that have competed on the program" means sports that have been approved by the IOC to participate as medal sports at an upcoming Olympic Games. An Olympic Sport Organization that has participated in the immediate past Olympic Games is eligible to remain an Olympic Sport Organization until determined that its sport is not included on the program of the next Games. Each Olympic Sport Organization will be identified with a sport included on the program of the Olympic Games. In accordance with the IOC's Olympic Charter, the corporation will not recognize or certify more than one NGB in each sport. Olympic Sport Organizations will be United States members of IFs recognized by the IOC.

Section 8.3.2 Pan American Sport Organizations. Eligibility for membership as Pan American Sport Organizations will be limited to those Amateur Sports

Organizations that are recognized and certified by the corporation as the NGBs for sports that have competed on the program of the Pan American Games, but which are not competing at the Olympic Games. The term “sports that have competed on the program” means sports that have been approved by Panam Sports to participate as medal sports at an upcoming Pan American Games or competed as medal sports in the immediate past Pan American Games. A Pan American Sport Organization that has participated in the immediate past Pan American Games is eligible to remain a Pan American Sport Organization until determined that its sport is not included on the program of the next Games. Each Pan American Sport Organization will be identified with a sport included on the program of the next Pan American Games. In accordance with the IOC’s Olympic Charter, the corporation will not recognize or certify more than one Pan American Sport Organization in each sport. Pan American Sport Organizations will be United States members of IFs recognized by the IOC.

Section 8.3.3 Designation to Govern a Paralympic or ParaPan American Sport. For any sport that is included on the program of the Paralympic Games or the ParaPan American Games, the corporation is authorized to designate, where feasible and when such designation would serve the best interest of the sport, and with the approval of the affected NGB, an NGB recognized under Section 8.3.1 or 8.3.2 to govern such sport.

Section 8.3.4 Para Sport Organizations. Eligibility for membership as a Para Sport Organization will be limited to those Amateur Sports Organizations that are not NGBs under Sections 8.3.1-8.3.3 above and are recognized and certified by the corporation as the NGBs to govern a sport that is included on the program of the Paralympic Games or the ParaPan American Games. The term “sports that are included on the program” means sports that have been approved by the IPC to participate as medal sports at an upcoming Paralympic Games. Subject to the terms of these Bylaws, any such PSO will comply with the criteria for NGBs applicable to Olympic and Pan American Sport Organization members, and will perform those duties, and have those powers that the corporation, in its sole discretion, determines are appropriate to meet the objects and purposes of the Act and these Bylaws. A PSO will be a member of each IF or International Sports Organization of the sport or sports it governs.

Section 8.4 NGB Certification Requirements. An Olympic, Pan American or Para Sport Organization, in order to fulfill its membership obligations and to be considered a member in good standing with the corporation must cooperate with and satisfy all aspects of the corporation’s NGB certification program as set out herein and in supporting USOPC policies. Any entity not so certified, and any entity decertified by the corporation will automatically be ineligible for membership.

Section 8.4.1. Certification Standards.

To be certified, an NGB must satisfy these requirements:

a) Governance and Compliance.

- i. fulfill all responsibilities as an NGB as set forth in the Act
- ii. adopt and maintain governance and athlete representation policies complying with the requirements of these Bylaws
- iii. adopt and maintain an Athletes Advisory Council composed entirely of NGB 10 Year Athletes, except that it may include up to 20% (of total council membership) NGB 10 Year+ Athletes (definitions in Section 8.5 below), as a part of its overall governance structure ("NGB AAC")
- iv. adopt and maintain appropriate good governance practices
- v. be recognized by the Internal Revenue Service as a tax-exempt organization under the Internal Revenue Code
- vi. adopt and enforce a code of conduct for its employees, members, board of directors, and officers including clear conflicts of interest principles
- vii. adopt and enforce ethics policies and procedures
- viii. demonstrate an organizational commitment to diversity and inclusion
- ix. satisfy such other requirements as are set forth by the corporation

b) Financial Standards and Reporting Practices.

- i. demonstrate financial operational capability to administer its sport
- ii. be financially and operationally transparent and accountable to its members and to the corporation
- iii. adopt a budget and maintain accurate accounting records in accordance with accounting principles generally accepted in the United States of America (GAAP)
- iv. submit its complete IRS Form 990 and audited financial statements, including management letter and budget, to the corporation annually
- v. post on its website its current bylaws and other organic documents, its IRS Form 990 for the three most recent years, and its audited financial statements for the three most recent years
- vi. satisfy such other requirements as are set forth by the corporation

c) Athlete Safety.

- i. comply with all applicable athlete safety and child protection laws

- ii. comply with the policies and requirements of the USCSS
- iii. maintain and enforce an athlete safety program consistent with the policy(ies) and standards directed by the corporation
- iv. comply with the anti-doping policies of the corporation and with the policies and procedures of USADA
- v. satisfy such other requirements as are set forth by the corporation

d) Sport Performance.

- i. maintain and execute on a strategic plan that is capable of supporting athletes in achieving sustained competitive excellence, and in growing the sport
- ii. publish athlete, coach, and staff participation criteria for all Protected Competitions (e.g., eligibility requirements and deadlines, conditions of participation, and selection criteria where applicable)
- iii. where selection to participate in Protected Competition applies, establish selection procedures for athletes, coaches, and staff that are:
 - a. developed and approved by a Designated Committee
 - b. fair, clearly articulated in writing, and properly communicated and published in a timely manner
- iv. timely submit for corporation approval athlete, coach, and staff selection procedures for Delegation Events
- v. consistently apply and effectively conduct, in accordance with applicable selection procedures, a selection process
- vi. competently and timely nominate to the corporation athletes and team officials for Delegation Event teams as applicable
- vii. satisfy such other requirements as are set forth by the corporation

e) Operational Performance.

- i. demonstrate managerial capability to administer its sport
- ii. obtain and keep current insurance policies in such amount and for such risk management as appropriate
- iii. actively seek, in good faith, to generate revenue in addition to any resources that may be provided by the corporation, sufficient to achieve financial sustainability
- iv. maintain and enforce grievance procedures that provide for prompt and equitable resolution of grievances and fair notice and an opportunity for a hearing before declaring an individual ineligible to participate, and agree to submit to

binding arbitration for any controversy involving the opportunity to participate in competition as required by the Act

- v. adopt a whistleblower and anti-retaliation policy
- vi. cooperate with the corporation in preventing the unauthorized use of the names and trademarks of the corporation, the words “Olympic,” “Paralympic” and “Pan American,” and their derivatives, as well as their symbolic equivalents
- vii. satisfy such other requirements as are set forth by the corporation

These standards and the particular measures to be used in evaluating compliance with them will be set out in the corporation’s NGB Audit Standards Policy approved by the corporation Board and administered by the corporation’s Audit team.

Section 8.4.2 Certification Standards Exceptions. The corporation may provide limited exceptions to the foregoing standards as applied to an NGB that, as a result of its overall structure or other activities, cannot and need not reasonably be required to meet a particular standard. In the case of any such exceptions, the corporation will specify in writing the limited exceptions made and post the exceptions online for public access.

Section 8.4.3 NGB Audits. Every NGB must cooperate with and demonstrate its compliance with the certification requirements set out in these Bylaws and the corporation’s NGB Audit Standards Policy as set out in the procedures connected to that policy. As well, every NGB must cooperate with the recurring certification renewal process administered under the corporation’s Certification Renewal Policy.

Section 8.5 Athlete NGB Representation - Boards, Designated Committees, Other Committees.

Section 8.5.1 Definitions. For the purposes of this Section 8.5, the term:

- a) “Designated Committee” means any NGB committee that makes recommendations or decisions directly impacting its elite athletes, including at least the following (by name or by function):
 - i. Allocation of USOPC- and/or NGB-provided resources
 - ii. Audit
 - iii. Budget/Finance
 - iv. Compensation
 - v. Ethics

- vi. Judicial, grievance, and any other hearing panel affecting any individual's participation in Protected Competition
 - vii. Nominating and Governance, including Bylaws amendments
 - viii. Selection of athletes, coaches and/or staff for Protected Competition, including development, approval and implementation of selection criteria
- c) "Other NGB Committee" means any NGB committee not contemplated by the definition of "Designated Committee" in these Bylaws
- d) "NGB Actively Engaged Athlete" means (i) an athlete who qualifies as an NGB 10 Year Athlete or NGB 10 Year+ Athlete; (ii) an athlete who has been actively engaged in 24 months prior to election/selection in an NGB-Sanctioned competition (as defined by the NGB AAC and approved by the NGB Athlete Representation Review Working Group as set out below), which may include events that categorize entrants in age-restricted classifications; and (iii) an Athlete Competition Partner, as defined in the IPC Accreditation Guide, who serves an athlete qualifying under (i) or (ii) above.
- e) "NGB 10 Year Athlete"⁴ means (i) an athlete who qualifies as a USOPC 10 Year Athlete; or (ii) an athlete who has been selected to compete in a competition as defined by the NGB AAC and approved by the NGB Athlete Representation Working Group, within the previous 10 years.
- f) "NGB 10 Year+ Athlete" means (i) an athlete who qualifies as a USOPC 10 Year+ Athlete; or (ii) an athlete who has been selected to compete in a competition as defined by the NGB AAC and approved by the NGB Athlete Representation Working Group, but not within the previous 10 years.

"NGB Athlete Representation Review Working Group" means the following:

- i. The working group's role is to review and approve (by majority vote) any deviations from (i) the requirements of this Section 8.5 regarding athlete representation on NGB Boards, and Designated Committees; and (ii) application of the NGB 10 Year and NGB 10 Year+ Athlete definitions, as set out therein, and to provide guidance and support where there are omissions or room for interpretation;

⁴ Where an NGB athlete representative must be an NGB 10 Year Elite Athlete, the following norms will apply: Time measurement applies without adjustment or expiration throughout the term(s) of the position held by the athlete representative, including any consecutive reappointment term(s); and in cases where the representative's seat derives from an underlying office (e.g., an NGB board member serving on an NGB committee) this measurement is made based on the underlying office rather than the new role (i.e., no additional measurement applied).

- ii. the working group is made up of three people, including one representative each from the AAC leadership, NGBC leadership, and the relevant NGB's USOPC AAC representative, (or alternate in the event of conflict of interest). The Executive Director of the USOPC AAC will attend all working group meetings but not have a vote in working group decisions. A representative from the USOPC NGB Services team will provide administrative support to the working group;
- iii. the working group may rule on applications for exceptions based on written submissions unless at least one member of the working group requests a hearing.

Section 8.5.2 Athlete Representation Requirements. An NGB, in order to fulfill its membership obligations and to be considered a member in good standing with the corporation, will comply with the athlete representation requirements in this Section 8.5.

Section 8.5.3 Athlete Representation on NGB Boards.

a) Composition and Eligibility.

- i) Athlete representatives will equal at least 33.3% of all NGB boards of directors, executive Boards, and other governing Boards.
 - a. At least 20% will be NGB 10 Year Athlete representatives; the remaining will be either NGB 10 Year or NGB 10 Year+ Athlete representatives.
 - b. At least half of these athlete representatives will have obtained NGB 10 Year or NGB 10 Year+ Athlete representative eligibility through having been selected to compete at an event that, at the time of election/selection, is on a Delegation Event program.
- ii) The NGB's representative on the USOPC AAC will be on the NGB board, with voice and vote, and may be included as part of the 20% NGB 10 Year Athlete representation requirement.
 - a. The NGB's alternate on the USOPC AAC will be a non-voting *ex officio* member of the NGB board, provided that if the alternate is included as a full member of the board with voice and vote, they will be included as part of the 20% NGB 10 Year Athlete representation requirement.
 - b. Removal. Either the USOPC AAC or the NGB board may remove and replace this athlete representative through their respective policies and processes. If such removal occurs,

the first removing body will promptly inform the other body, which must also remove and replace that athlete representative as soon as possible, but no longer than three months thereafter (subject always to applicable law). Immediate removal may be warranted for violations including but not limited to violations of anti-doping, SafeSport, fraud, or felony rules. The first removing body will also promptly inform the NGB Athlete Representation Review Working Group, who will ensure the removal from both bodies was appropriate and will work with the parties to determine the most expedient way to minimize any gap in athlete representation.

- iii) The applicable eligibility requirements and conflict of interest policies of all relevant stakeholders (i.e., NGB, USOPC AAC, and/or USOPA) apply in determining the eligibility of a candidate.

b) Election.

- i) All athlete representatives on NGB boards will be directly elected by the pool of athletes who meet the requirements as NGB 10 Year Athlete representatives for that NGB.
- ii) The NGB AAC and NGB nominating and governance committee will develop a process to identify and vet candidates to serve as the NGB 10 Year+ Athlete representatives.

c) Higher Standards, Additions, Restrictions or Exceptions.

- i) Any higher standard, addition, restriction or exception to the requirements of this section (including the need for proportional or weighted voting to achieve the necessary level of athlete representation in extraordinarily large legislative bodies such as “Houses of Delegates” or “Boards of Governors”) will first be approved by the NGB AAC and then submitted to the NGB Athlete Representation Review Working Group for review and approval.

Section 8.5.4 Athlete Representation on NGB Designated Committees.

a) Composition and Eligibility.

- i. Athlete representatives will equal at least 33.3% of all NGB Designated Committees

- a. At least half of those athlete representatives will be NGB 10 Year Athlete representatives; the remaining will be either NGB 10 Year or NGB 10 Year+ Athlete representatives.
 - b. In the case of any committee overseeing selection of athletes, coaches, and/or staff for a Para sport Protected Competition, at least half of the athlete representatives (10 Year and 10 Year+) will have obtained their eligibility through competing in a Para sport event.
- b) Selection.
 - a. All athlete representatives on NGB Designated Committees will be selected by the NGB AAC.
 - b. The NGB AAC and NGB nominating and governance committee will develop a process to identify and vet candidates to serve as the NGB 10 Year+ Athlete representatives.
- c) Higher Standards, Additions, Restrictions or Exceptions.
 - a. Any higher standard, addition, restriction or exception to the requirements of this section (including the addition of a committee to the list of Designated Committees) will first be approved by the NGB AAC and then submitted to the NGB Athlete Representation Review Working Group for review and approval.

Section 8.5.5 Athlete Representation on Other NGB Committees.

- a) Composition and Eligibility.
 - i. NGB Actively Engaged Athlete representatives will equal at least 33.3% of all Other NGB Committees.
- b) Selection.
 - i. All athlete representatives will be selected by the NGB AAC.
 - ii. The NGB AAC and NGB nominating and governance committee will develop a process to identify and vet candidates to serve as Actively Engaged Athlete representatives
- c) Higher Standards, Additions, Restrictions or Exceptions.
 - i. Any higher standard, addition, restriction or exception to the requirements of this section (including the exclusion of a committee from these requirements, or the narrowing of the pool of athletes

who serve as Actively Engaged Athlete representatives) will be approved by the NGB AAC and reported (matter and resolution) to the NGB Athlete Representation Review Working Group for tracking purposes.

Section 8.6 Dues. The corporation Board will fix the amount of annual dues, if any, for each member organization of the corporation. Such dues will be fixed on an equitable basis and will be due and payable on the first day of January each year. A member's failure to pay its dues by the first day of February will suspend all membership privileges of the delinquent member, including participation in the Olympic and Paralympic Assembly, until all arrearages are paid. Membership will be terminated automatically if the delinquent member remains in arrears for dues by the first day of February of the next succeeding year.

Section 8.7 Attendance at the Olympic and Paralympic Assembly. Members in good standing will be entitled to attend the Olympic and Paralympic Assembly.

Section 8.8 Publication of Members. The corporation will publish on its website a list of its member organizations.

Section 8.9 General Procedures Applicable to Membership Matters. Except for changes in membership and recognition as an NGB as provided for in Sections 10 and 11 of these Bylaws, all questions relating to membership in the corporation, including termination of membership status, will be decided by the corporation Board.

Section 8.10 Applications for Membership. An Amateur Sports Organization that desires to become a member of the corporation, or that desires to transfer membership from one membership group to another, will apply in writing to the corporation. Applications made under this Section will be of sufficient detail to demonstrate that the applicant meets the criteria for membership in the group for which application is made. Prior to action by the corporation Board on an application for membership, or for membership transfer, corporation staff will submit a written report with recommendations to the corporation Board showing the facts that relate to the proposed action. Prior to preparing their report to the corporation Board, the corporation will hold at least two public hearings concerning the application for membership. The corporation will publish on its website, not less than 30 days or more than 60 days prior to the date of each hearing, a notice of the time, place, and nature of such hearing. The corporation will send written notice, which will include a copy of the application, at least 30 days prior to the date of any such public hearing to all Amateur Sports Organizations in that sport that are known to the corporation. At such hearing, the corporation will afford both the applicant organization and any other interested parties an opportunity to comment on the merits of the application, and corporation staff will summarize in the report to the corporation Board the comments so received.

Section 8.11 NGB Compliance; Decertification. Any action by the corporation to

decertify or otherwise suspend or revoke the membership of an NGB pursuant to the provisions of Section 220521(d) of the Act and Section 8.1 of these Bylaws will be finally determined by the corporation Board as set out in the USOPC Dispute Resolution Policy. Such action may be taken as a result of a compliance review undertaken by the corporation or pursuant to other information known to, or provided by a third party to, the corporation. An NGB may be immediately decertified by the corporation Board without employing the process set out in the Dispute Resolution Policy in any case where (i) that NGB and the USOPC enter into a specific written agreement to that effect; or (ii) that NGB becomes ineligible to serve under the “competed on the program” requirements of Sections 8.3.1, 8.3.2, or 8.3.4.

Section 8.11.1 NGB Compliance Team. The corporation’s NGB Compliance team will oversee matters involving potential or actual failures of any NGB to comply with the certification and membership requirements in these Bylaws. That team will work with the corporation’s NGB Audit and dispute resolution teams as well as other elements of the organization, to inform its work. In addition to prosecuting NGB decertification actions, the corporation’s NGB Compliance team may implement a consistent series of compliance steps for application across NGB compliance matters and develop a standing set of recommended corporation compliance actions for application in particular matters. These may be published in corporation NGB compliance policies.

SECTION 9

ATHLETES' RIGHTS TO PARTICIPATE IN PROTECTED COMPETITION

Section 9.1 Opportunity to Participate. No member of the corporation may deny or threaten to deny any Amateur Athlete the opportunity to participate in an upcoming Protected Competition nor may any member, subsequent to such competition, censure, or otherwise penalize, (i) any such athlete who participates in such competition, or (ii) any organization that the athlete represents. The corporation will, by all reasonable means, protect the opportunity of an Amateur Athlete to participate if selected (or to attempt to be selected to participate) in a Protected Competition. In determining reasonable means to protect an athlete's opportunity to participate, the corporation will consider its responsibilities to the individual athlete(s) involved or affected, to its mission, and to its membership.

Any reference to athlete in this Section 9 will also equally apply to any coach, trainer, manager, administrator or other official.

Section 9.2 Denial of Opportunity to Participate. Any athlete who alleges that they have been denied, or threatened denial, by a corporation member an opportunity to participate as established by Section 9.1 of these Bylaws, may seek to protect their opportunity to participate by filing a complaint with the corporation, and may make a subsequent demand for arbitration, all as set out in the USOPC Dispute Resolution Policy. An athlete competing in a team sport, where the team as a whole is affected, may bring a claim on behalf of the team.

Section 9.3 Administration. Complaints filed under this Section 9 will be administered by the corporation's dispute resolution team as set out in the Dispute Resolution Policy. When a complaint is properly filed, the dispute resolution team will promptly notify the Athlete Ombuds, the chair of the AAC and any necessary internal corporation staff of the complaint and confirm that the complaint has been served on the NGB.

Section 9.4 Failure to Properly File. A complaint that is not filed in accordance with the Dispute Resolution Policy will render the filing ineffective and the complaint will not be considered to have been properly filed.

Section 9.5 Action by the Corporation and the Office of Athlete Ombuds. Upon the filing of a complaint, the corporation's Dispute Resolution team and the Athlete Ombuds will review the complaint, seek information as to the merits of the complaint, and determine whether the complaint can be informally resolved to the satisfaction of the parties. The parties will cooperate with the Dispute Resolution team in providing information regarding the complaint and in exploring resolution of the complaint. If the complaint is not resolved or otherwise pursued through arbitration within 60 days, the

Dispute Resolution team will close the complaint.

Section 9.6 Arbitration. If the complaint is not settled to the athlete's satisfaction the athlete may file a claim with the arbitral organization designated by the corporation Board against the respondent for final and binding arbitration. If an impending competition requires immediate resolution of the complaint, an athlete may file a claim with the arbitral organization simultaneously with the filing of the complaint with the corporation.

The corporation has the right to participate in the arbitration proceeding in any capacity, but it cannot be involuntarily joined by a party or by an arbitrator appointed by the arbitral organization.

The arbitrator will render a reasoned award in writing. All such awards will be made public and published on the corporation's website.

Section 9.7 Affected Parties. In any arbitration brought pursuant to this Section 9, the athlete filing the claim will submit with the claim a list of all individuals the athlete believes may be adversely affected by the arbitration. The NGB will also promptly submit to the arbitrator a list of individuals it believes may be adversely affected by the arbitration, along with the relevant contact information for the individuals identified by the NGB and by the athlete. If requested by the arbitrator, the USOPC may also include a list of parties it believes to be affected. The arbitrator has the ultimate authority to determine which individuals will be included in the pool of affected athletes. The arbitrator will then promptly provide those individuals with notice of the arbitration. The arbitrator will also approve the notice to be given. Any individual identified as an affected party and so notified of the claim, will have the option to participate in the arbitration as a party. If an individual is notified of the claim, then that individual will be bound by the decision of the arbitrator even though the individual chose not to participate.

Section 9.8 Expedited Procedures. Upon the request of a party, claims may be heard on an expedited basis if filed for arbitration at least 48 hours in advance of the upcoming Protected Competition (or participation deadline) and provided that it is necessary to expedite the proceeding in order to resolve a matter relating to a Protected Competition that is so scheduled that compliance with regular procedures would not be likely to produce a sufficiently early decision to do justice to the affected parties. The arbitrator will hear and decide the claim within 48 hours of the filing of the claim. In such case, the arbitrator is authorized to hear and decide the claim under such procedures as are necessary, but fair to the parties involved. Additionally, the USOPC may take necessary measures to ensure that all parties, including the affected athletes, have timely notice of the claim.

Section 9.9 Time Bar. A claim against a respondent will be prohibited unless filed with the arbitrator no later than 180 days after the alleged date of denial and the

competition that is the subject of the dispute is still upcoming.

Section 9.10 Anti-Doping Violations. A pending case or decision concerning an anti-doping rule violation under the jurisdiction of, or adjudicated by, an anti-doping organization is not reviewable through, or the subject of, these Bylaws.

Section 9.11 SafeSport Violation. An allegation or decision concerning a SafeSport rule violation that is either accepted under the jurisdiction of the USCSS or adjudicated by the USCSS (or was previously adjudicated by an NGB prior to the opening of the USCSS) is not reviewable through, or the subject of, these Bylaws.

Section 9.12 Field of Play Decisions. The final decision of a referee during a competition regarding a field of play decision (a matter set forth in the rules of the competition to be within the discretion of the referee) is not reviewable through or the subject of these Bylaws unless the decision is (i) outside the authority of the referee to make or (ii) the product of fraud, corruption, partiality or other misconduct of the referee. For purposes of this Section, the term “referee” includes any individual with discretion to make field of play decisions.

Section 9.13 Complaints Regarding Compliance. No action taken by an athlete under this Section 9 precludes, or acts as a bar, to the filing of a complaint by the athlete under Section 10 of these Bylaws.

SECTION 10

COMPLAINTS OF NON-COMPLIANCE AGAINST AN NGB

Section 10.1 Complaints of NGB Non-Compliance. Any Amateur Sports Organization or person that belongs to, or is eligible to belong to, an NGB may ask the corporation to investigate and take any appropriate compliance action against such NGB to compel satisfaction of the requirements of Section 8 of these Bylaws and Sections 220522-220525 of the Act by making a request to the corporation's compliance division and providing full factual details and bases for the request. The corporation will consider any such request and inform the requestor if it will pursue direct compliance action including possible filing of a complaint under Section 8 of these Bylaws.

In any case where the corporation declines to pursue direct compliance action under this Section 10.1 or where an Amateur Sports Organization or person that belongs to, or is eligible to belong to, an NGB itself otherwise wishes to compel such NGB to comply with the requirements of Section 8 of these Bylaws and Sections 220522-220525 of the Act, such party may file a written complaint with the corporation's dispute resolution team, and the matter will then be handled, as set out in the USOPC Dispute Resolution Policy.

SECTION 11

APPLICATION TO REPLACE AN NGB

Section 11.1 Manner of Filing the Application. Any Amateur Sports Organization may seek to replace an incumbent as the NGB for a particular sport by filing with the corporation a written application for such recognition, and the matter will then be handled, as set out in the USOPC Dispute Resolution Policy and Procedure.

Section 11.2 Filing Period. An application under this Section 11 must be filed (i) within the one-year period after the final day of any Olympic Games in the case of a sport for which competition is held in the Olympic Games or Paralympic Games or in both the Olympic and Pan American Games, or in both the Paralympic Games and Parapan American Games, or (ii) within the one-year period after the final day of any Pan American Games in the case of a sport for which competition is held in the Pan American Games or Parapan American Games and not in the Olympic Games or Paralympic Games.

SECTION 12

CODE OF CONDUCT FOR VOLUNTEERS, STAFF AND MEMBER ORGANIZATIONS

Section 12.1 Code of Conduct. The corporation Board will adopt a Code of Conduct for members of the corporation Board, committee and task force members, member organizations associated with the corporation, the CEO, all corporation employees, council members, and others who are associated with the corporation (the “Code”). The Code will establish minimum standards for the conduct of corporate personnel, including staff. All member organizations will comply with the requirements of the Code, when representing the corporation or participating in corporation activities or events. Violations of the Code will be handled in the manner specified in the Code. Amendments to the Code will require a recommendation of the Ethics and Compliance Committee and the approval of two-thirds of the voting power of the directors present at a meeting of the corporation Board.

Section 12.2 Affirmative Obligation to Promote Ethical Conduct. All corporation personnel should promote ethical behavior and take steps to ensure that the corporation:

- a) encourages employees, corporation Board, committee, and task force members and others associated with the corporation to address ethical concerns, and to talk to supervisors, managers, and the Ethics team, when in doubt about the best course of action in a particular situation;
- b) encourages everyone associated with the corporation to report, on a confidential basis, violations of laws, rules, regulations or the Code to the Ethics team or the Ethics and Compliance Committee; and
- c) informs corporation personnel that the corporation will not allow retaliation for reports made in good faith concerning ethical behavior or the violation of laws, rules, regulations, or the Code.

Section 12.3 Written Standards. The corporation will develop, maintain, and distribute written standards of conduct, as well as written policies, procedures and protocols, that promote the corporation’s commitment to compliance with such standards and address specific areas of potential infractions.

Section 12.4 Compliance Officer. On matters of ethics, the Chief Ethics & Compliance Officer (for purposes of this Section 12, the “ethics officer”) will report functionally to the Ethics and Compliance Committee and operationally to the CEO or their designee and will be charged with the responsibility for developing, operating, and monitoring the corporation’s ethics program, subject to oversight by the Ethics and Compliance Committee.

Section 12.5 Education and Training. The corporation will develop and maintain regular and effective education and training programs for all affected corporation employees, officers, directors, committee and task force members, and volunteers, and others associated with the corporation.

Section 12.6 Effective Communication. The corporation will ensure that an effective line of communication exists between the ethics officer and all corporation employees, officers, directors, committee members, and volunteers, and others associated with the corporation, including maintaining a process, such as a hotline or other reporting system, to receive complaints and the adoption of procedures to protect the anonymity of complainants and to protect complainants from retaliation based on their reporting of ethics or compliance issues.

Section 12.7 Monitoring. The corporation will use audits and other risk evaluation techniques to monitor compliance and identify problem areas affecting the corporation and its employees, officers, directors, committee and task force members, and volunteers, and others associated with the corporation.

Section 12.8 Investigation. The corporation will develop and maintain policies and procedures with respect to the investigation of identified systemic problems, which include direction regarding the prompt and proper response to detected offenses, such as the initiation of appropriate corrective action and preventive matters.

Section 12.9 Reporting Systems. The corporation will develop and maintain a system to respond to allegations of illegal, unethical, or improper activities and enforcement of appropriate disciplinary action against members of the corporation Board, committee and task force members, member organizations associated with the corporation, the CEO, all corporation employees and others who are associated with the corporation who have violated internal compliance policies, applicable statutes, regulations, or other corporation requirements.

Section 12.10 Member Organizations and Bid Cities. The corporation will require its member organizations and any bid city organizations to implement procedures that comply with the requirements of Sections 12.3 through 12.9 of these Bylaws.

SECTION 13

THE OFFICE OF ATHLETE OMBUDS

Section 13.1. Office Focus. The Office of Athlete Ombuds is charged with providing independent information, support, and guidance to athletes selected (or attempting to qualify for selection) for a Protected Competition. The office may cooperate and coordinate with other parties but is not charged with providing similar support to them. The corporation will not prevent or prohibit the Office of Athlete Ombuds from carrying out any duty or responsibility under these Bylaws or federal law.

Section 13.2 Confidential Information. The Office of Athlete Ombuds will keep information that is communicated or provided to them in any matter involving the exercise of their official duties confidential, except that the Office of Athlete Ombuds may use such information as necessary in resolving or mediating a dispute, with permission of the parties involved.

Section 13.3 Privilege. The Office of Athlete Ombuds will not be compelled to testify or produce evidence in any judicial or administrative proceeding with respect to any matter involving the exercise of their official duties. All related memoranda, work product, notes or case files of the Office of Athlete Ombuds are confidential and are not subject to discovery, subpoena, or other means of legal compulsion, and are not admissible in evidence in a judicial or administrative proceeding.

Section 13.4 Exceptions to Privilege. The privilege described in Section 13.3 of these Bylaws does not apply to information concerning:

- a) applicable federally mandated reporting requirements or Congressional subpoenae;
- b) a felony personally witnessed by any member of the Office of Athlete Ombuds;
- c) a situation where an individual is at imminent risk of serious harm, which is communicated to a member of the Office of Athlete Ombuds; and/or
- d) the general operation of the Office of Athlete Ombuds and the general processes employed.

Section 13.5 Office Statements. In light of the Office of Athlete Ombuds' independence pursuant to the Act, statements of any member of the Office of Athlete Ombuds will not be deemed to reflect the views or positions of the corporation as evidence in any legal or judicial proceeding.

Section 13.6 Athlete Legal Aid Program. The Office of Athlete Ombuds will

oversee the management and implementation of the athlete legal aid program and corporation fund provided for use by eligible athletes lacking adequate resources to effectively participate in dispute resolution matters before anti-doping organizations, NGBs, the USCSS, or the corporation.

SECTION 14

ATHLETES' ADVISORY COUNCIL AND U.S. OLYMPIANS AND PARALYMPIANS ASSOCIATION

Section 14.1 AAC Duties. There will be an AAC recognized by the corporation Board and composed of, and elected by, USOPC 10 Year Athletes to ensure communication between the corporation and currently active athletes, to serve as a source of athlete opinion and advice to the corporation Board with regard to both current and contemplated policies of the corporation, and to help ensure a strong and effective athlete voice in corporation governance. The AAC will elect three members to the corporation Board as set out in Section 3 of these Bylaws. AAC leadership will meet regularly with the corporation Board to discuss issues of importance to athletes and will contribute to the corporation annual report to Congress contemplated in Section 2 of these Bylaws. AAC leadership will also supervise and provide direction to professional AAC staff provided by the corporation.

Section 14.2 AAC Composition. The AAC will consist of at least (i) one athlete from each NGB elected by athletes having been selected to compete at the appropriate level in the sport governed by that NGB, (ii) two athletes elected from among athletes competing in winter Paralympic sports, elected by athletes having been selected to compete at the appropriate level in the winter Paralympic sports (iii) six athletes elected from among athletes having been selected to compete in summer Paralympic sports, elected by athletes having been selected to compete at the appropriate level in the summer Paralympic sports and (iv) six athletes elected by the AAC to serve at-large on the AAC.

Section 14.3 AAC Leadership. The AAC will develop and maintain in its bylaws election procedures for its leadership team including a chair. These procedures must be based on elections of candidates solely from among AAC members, a full and fair opportunity for candidates to make their candidacies known and understood to all AAC members, and a full and fair vote conducted among all such members. All candidates for AAC leadership service must be qualified to serve under the terms of these Bylaws, in particular Section 3.7 hereof. The AAC will ensure that members of its leadership team serve terms of four years with an overall term limit of two such terms, with leadership team member terms staggered so that no more than two-thirds of leadership team member terms expire in the same year.

Section 14.4 AAC Operation. The AAC will meet regularly and in accordance with the budget approved by the corporation Board. The AAC will operate in accordance with bylaws adopted by the members of the AAC. AAC bylaws adoption and amendment will not require approval of the corporation Board, except in any case where they may conflict with the Act or these Bylaws, and/or where they would require increased funding

or expenditures by the corporation.

Section 14.5 AAC Terms. Election to membership in the AAC will be made in accordance with provisions of the AAC Bylaws. Elected athletes will serve until their successors are elected unless removed for cause or not for cause pursuant to the AAC Bylaws, except as otherwise set forth in the corporation's Bylaws.

Section 14.6 Athlete Representation on Corporation Board and Committees. USOPC 10 Year Athlete representatives will equal 100 percent of the AAC, at least 20 percent of the voting power of the corporation Board of the corporation and at least 20 percent of the membership and voting power of all corporation committees, task forces and other such groups operating under the authority of the corporation Board.

Section 14.7 AAC Qualifications. Athlete representatives to the AAC (i) representing Olympic and Pan American sports, must be directly elected by athletes from their NGB who meet the standard set forth in Section 14.6 of these Bylaws at the time of election, (ii) representing Paralympic or Parapan American Games sports, must be directly elected by athletes from NGBs designated to govern a Paralympic or Parapan American Games sport (or the corporation if overseeing a Paralympic or Parapan American Games sport) who meet the standard set forth in Section 14.6 of these Bylaws, and (iii) who are at-large members of the AAC must be directly elected by athletes serving on the AAC.

Section 14.8 AAC NGB Election Procedures. Each NGB will inform and, on AAC request, confer with the AAC in advance in adopting a clear and published procedure whereby eligible athletes as defined in Section 14.6 of these Bylaws will elect an active athlete to represent the Olympic or Pan American sport governed by the NGB on the AAC. The NGBs designated to govern a Paralympic or Parapan American Games sport, collectively, with the corporation, will adopt and submit to the AAC, consistent with policies established by the AAC, a procedure whereby eligible athletes as defined in Section 14.6 of these Bylaws will elect eligible athletes to represent the Paralympic and Parapan American Games sports on the AAC.

Section 14.9 USOPA. There will be a U.S. Olympians and Paralympians Association recognized by the corporation Board and composed of US Olympians and Paralympians to foster Olympism and Olympic and Paralympic values in communities, develop camaraderie among members, honor those who have shared the unique experience of representing the United States of America in the Olympic Games or Paralympic Games, and help ensure a strong and effective retired athlete voice in corporation governance. USOPA will participate in nominating candidates for the corporation Board as set out in Section 3 of these Bylaws.

Section 14.10 USOPA Composition. USOPA will consist of US Olympians and Paralympians, other members of US delegations to those events, and others demonstrating extraordinary commitment to the USOPA mission as set out in the

USOPA governing documents. For purposes of these Bylaws, USOPA members with voting rights to elect USOPA Leadership as contemplated in Section 14.11 below are US Olympians and Paralympians only, and are referred to by USOPA as “regular” members.

Section 14.11 USOPA Leadership. USOPA will develop and maintain in its governing documents election procedures for its leadership team including a chair. These procedures must be based on elections to a leadership team from among USOPA regular member candidates, a full and fair opportunity for candidates to make their candidacies known and understood to all USOPA members, and a full and fair vote conducted among all regular members. All candidates for USOPA leadership service must be qualified to serve under the terms of these Bylaws, in particular Section 3.7 hereof. USOPA will ensure that members of its leadership team serve terms of four years with an overall term limit of three such terms (including a maximum of two terms as USOPA President), with leadership team member terms staggered so that no more than two-thirds of leadership team member terms expire in the same year.

Section 14.12 USOPA Operation. USOPA will operate in accordance with USOPA governance documents adopted by the members of USOPA. These documents’ adoption and amendment will not require approval of the corporation Board, except in any case where they may conflict with the Act or these Bylaws, and/or where they would require increased funding or expenditures by the corporation. USOPA will meet regularly and in accordance with the budget approved by the corporation Board.

SECTION 15

NATIONAL GOVERNING BODIES COUNCIL

Section 15.1 Duties. There will be an NGBC recognized by the corporation Board and made up of representatives of NGBs selected by their corporation Boards of directors to ensure communication between the corporation and NGBs, and to serve as a source of NGB opinion and advice to the corporation Board with regard to both current and contemplated policies of the corporation. The NGBC will elect three members to the corporation Board as set out in Section 3 of these Bylaws. NGBC leadership will meet regularly with the corporation Board to discuss issues of importance to NGBs and will contribute to the corporation annual report to Congress contemplated in Section 2 of these Bylaws.

Section 15.2. Composition. The NGBC will include two members selected by each NGB.

Section 15.2 Term. Each member of the NGBC will serve until replaced by the NGB that appointed them, unless removed for cause or not for cause by the NGBC pursuant to fair procedures as provided for in the NGBC bylaws.

Section 15.3 Leadership. The NGBC will develop and maintain in its bylaws election procedures for its leadership team of up to six members including a chair. These procedures must be based on elections of candidates solely from among NGBC members, a full and fair opportunity for candidates to make their candidacies known and understood to all NGBC members, and a full and fair vote conducted among such members. All candidates for NGBC leadership service must be qualified to serve under the terms of these Bylaws, in particular Section 3.7 hereof. The NGBC will ensure that members of its leadership team serve terms of four years with an overall term limit of three such terms (including a maximum of one term as NGBC Chair and one term as NGBC Vice Chair), with leadership team member terms staggered so that no more than two-thirds of leadership team member terms expire in the same year.

Section 15.4 Operation. The NGBC will operate in accordance with NGBC bylaws adopted by the members of the NGBC. NGBC bylaws adoption and amendment will not require approval of the corporation Board, except in any case where they may conflict with the Act or these Bylaws, and/or where they would require increased funding or expenditures by the corporation. The NGBC will meet and conduct business as necessary in accordance with its bylaws and the budget approved by the corporation Board.

SECTION 16

AFFILIATE ORGANIZATIONS

Section 16.1 Corporation Board Authority. The corporation Board or its designee has the power to grant properly qualified organizations Affiliate status in each of the categories listed in this Section 16, to transfer an Affiliate Organization from one category to another and to terminate an Affiliate Organization's Affiliate status. The corporation Board or its designee will specify the date upon which the rights and duties of new and transferred Affiliates will become effective. If no date is specified, such rights and duties will become effective immediately.

Section 16.2 General Requirements. Organizations eligible for Affiliate status will be those that qualify for a category listed in Section 16.3 below and take some active part in the administration of one or more sports or competitions that are also on the program of a Delegation Event, administer other sports that are widely practiced in the United States and/or are organizations (patriotic, educational, or cultural) that are engaged in efforts to promote the participation in, or preparation for, Amateur Athletic Competition. Organizations that are purely commercial or political in character are not eligible for Affiliate status. Affiliate Organizations must not be members of the corporation, and will have the rights and obligations set out in this Section 16, in the Affiliate Organizations Council Bylaws, and in Affiliate Organization agreements and policies executed by the corporation from time to time.

Section 16.3 Affiliate Organization Categories. Subject to the general requirements of Section 16.2 above, the following categories of organizations may participate as Affiliate Organizations:

Section 16.3.1 Community-Based Organizations. Eligible for Affiliate status as Community-Based Organizations will be those national Amateur Sports Organizations that directly or indirectly conduct a national program or regular national Amateur Athletic Competition in two or more sports that are also included on the official program of a Delegation Event on a level of proficiency appropriate for the selection of Amateur Athletes to represent the United States in unrestricted International Amateur Athletic Competition and (i) promote and encourage physical fitness and public participation in amateur athletic activities; (ii) encourage and provide assistance to amateur athletic activities for youth, women, and/or minorities; and/or (iii) encourage and provide assistance to amateur athletic programs and competition for Amateur Athletes with disabilities.

Section 16.3.2 Education-Based Organizations. Eligible for Affiliate status as Education-Based Organizations will be those sports scholastic organizations comprised of educational institutions regularly conducting sport programming involving enrolled student athletes, where such sports that are also included on the program of a

Delegation Event on a level of proficiency appropriate for the selection of Amateur Athletes to represent the United States in athletic competition.

Section 16.3.3 Armed Forces Organizations. Eligible for Affiliate status as Armed Forces Organizations will be organizations represented on the U.S. Armed Forces Sports Council and representing any branch of the armed services recognized by the United States Government.

Section 16.3.4 Recognized Sport Organizations. Eligible for Affiliate status as Recognized Sport Organizations will be those national Amateur Sports Organizations (i) that are not eligible for membership as an Olympic, Pan American or Para Sport Organization, (ii) that administer sports not considered to be disciplines of Delegation Event sports, (iii) that are widely practiced in this and other countries and continents, and (iv) whose international sports federation is recognized by the IOC or IPC as administering a Recognized Sport. Additionally, such sports organizations will:

- a) comply substantially with Sections 220522 through 220525 of the Act;
- b) be incorporated as a not-for-profit organization in the United States;
- c) be recognized by the Internal Revenue Service as a tax exempt organization under the Internal Revenue Code;
- d) administer and support an annual national championship of athletes from several different areas or regions of the United States;
- e) have an active athlete training and competition program financially supported by self-generated funds;
- f) have participated with a full contingent in two of the last three World Championships as sanctioned by its appropriate IF; and
- g) satisfy such other requirements, including without limitation demonstrating appropriate NGB-level governance, financial, and athlete safety operations, as are set forth by the corporation.

Section 16.3.5 Adaptive Sport Organizations. Eligible for Affiliate status as Adaptive Sport Organizations will be those organizations (i) conducting strategic national or regional adaptive sport programs or competitions; (ii) offering broad-based or sport-specific adaptive sport programs for sports, whether or not also on the official program of the Paralympic Games, on a level of proficiency appropriate for the selection of athletes to represent the United States in international competition; and (iii) promoting and encouraging adaptive sport opportunities as a platform for increased inclusion.

Section 16.4 Dues. The corporation Board will fix the amount of annual dues, if any, for each Affiliate Organization. Such dues will be fixed on an equitable basis and will be due and payable on the first day of January each year. An Affiliate's failure to pay its dues by the first day of February will suspend all Affiliate privileges of the delinquent Affiliate, including participation in the Olympic and Paralympic Assembly, until all arrearages are paid. Affiliate status will be terminated automatically if the delinquent Affiliate remains in arrears for dues by the first day of February of the next succeeding year.

Section 16.5 Attendance at the Olympic and Paralympic Assembly. Affiliates will be entitled to attend the Olympic and Paralympic Assembly.

Section 16.6 Publication of Affiliates. The corporation will publish on its website a list of its Affiliate Organizations.

Section 16.7 General Procedures Applicable to Affiliate Matters. All questions relating to Affiliate status in the corporation including termination of Affiliate status, will be decided by the corporation Board or its designee.

Section 16.8 Applications for Affiliate Status. An Amateur Sports Organization that desires to become an Affiliate of the corporation, or that desires to transfer from one category to another, will apply in writing to the corporation. The process for submitting such an application, for review of applications by the corporation Board or its designee, and for decisions on granting Affiliate status will be set out in policies and procedures executed by the corporation from time to time.

Section 16.9 Affiliate Organizations Council.

Section 16.9.1 Composition. There will be an Affiliate Organizations Council whose members will be one representative of each of the Affiliate Organizations selected by their corporation Board of directors or such other governing corporation Board to ensure effective communication between the corporation and such Affiliate Organizations.

Section 16.9.2 Term. Each member of the Affiliate Organizations Council will serve until replaced by the Affiliate Organization that appointed them, unless removed for cause or not for cause by the Affiliate Organizations Council pursuant to fair procedures as provided for in the Affiliate Organizations Council bylaws.

Section 16.9.3 Operation. The Affiliate Organizations Council will operate in accordance with bylaws adopted by the members of the Affiliate Organizations Council and approved by the corporation Board. The Affiliate Organizations Council will elect its own officers from among its members and will meet and conduct business in accordance with its bylaws and the budget approved by the corporation Board. All such Affiliate Organizations Council officers are subject to the qualifications criteria and

resolution process set out in Section 3.7 of these Bylaws.

SECTION 17

INDEMNIFICATION

Section 17.1 Indemnification Right. The corporation will indemnify each of its present or former directors, officers, employees, committee members or official representatives, or any person who is or was serving another corporation or other entity in any capacity at the request of the corporation, against all expenses actually and reasonably incurred by such person (including, but not limited to, judgments, costs and counsel fees) in connection with the defense of any pending or threatened litigation to which such person is, or is threatened to be made, a party because such person is or was serving in such capacity. This right of indemnification will also apply to expenses of litigation that is compromised or settled, including amounts paid in settlement, if the corporation will approve such settlement as provided in Section 17.2 of these Bylaws. Such person will be entitled to be indemnified if they acted in good faith and in a manner they reasonably believed to be in, and not opposed to, the best interests of the corporation. The termination of any litigation by judgment, order, settlements, conviction, or upon a plea of nolo contendere or its equivalent, will not, of itself, create a presumption that the person did not act in good faith and in a manner reasonably believed to be in, and not opposed to, the best interests of the corporation.

Section 17.2 Determination of Payment. Any amount payable as indemnification under this Section 17 will be determined and paid by the corporation pursuant to a determination by a majority vote of a quorum of the corporation Board, consisting of members of the corporation Board who have not incurred expenses in connection with the litigation for which indemnification is sought, that such person seeking indemnification has met the standards of conduct set forth in this Section 17. If such a quorum is not obtainable, or even if obtainable, a quorum of disinterested directors so directs, such determination will be made either:

- a) by the corporation Board upon the opinion in writing of independent legal counsel that indemnification is proper in the circumstances because the applicable standard of conduct set forth in this Section 17 has been met; or
- b) by a majority vote of the members of the corporation Board upon a finding that the person seeking indemnification has met the applicable standard of conduct set forth in this Section 17.

Section 17.3 Advance Payment of Litigation Expenses. Any expenses incurred by such person in connection with the defense of any litigation may be made by the corporation in advance of a final disposition of such litigation upon receipt of an undertaking by such person to repay such amount if it is determined under Section 17.2 of these Bylaws that such person is not entitled to be indemnified under this Section 17.

Section 17.4 Other Rights. The right of indemnification under this Section 17 will be in addition to, and not exclusive of, all other rights to which such person may be entitled.

Section 17.5 Insurance. The corporation Board may, at its discretion, authorize the purchase of insurance on behalf of any persons indemnifiable under this Section 17. Such insurance may include provisions for indemnification of such persons for expenses of a kind not subject to indemnification under this Section 17. Any repeal or modification of this Section 17 will be prospective only and will not adversely affect any right or protection of a director, officer, employee, fiduciary and agent of the corporation under this Section 17, as in effect immediately prior to such repeal or modification, with respect to any liability that would have accrued, but for this Section 17, prior to such repeal or modification.

SECTION 18

ORGANIZATION OF DELEGATION EVENTS IN THE UNITED STATES

Section 18.1 Games Organization. The organization of Delegation Events is governed by the rules of the IOC, Panam Sports and the IPC. Selection of the host cities for the Olympic Games will be made in accordance with IOC rules. Selection of the host cities for the Pan American Games and Parapan American Games will be made in accordance with special provisions in Panam Sports rules. Selection of the host cities for the Paralympic Games will be made in accordance with IPC rules.

Section 18.2 Bid Procedures. Any United States city interested in bidding for the privilege of organizing a Delegation Event in the United States will follow the procedures established by the corporation Board.

SECTION 19

DELEGATION EVENT-RELATED MATTERS

Section 19.1 Chef de Mission. The corporation Board will appoint a Chef de Mission, who will function as the liaison officer between the Local Organizing Committee for each Delegation Event, and the members of the United States official delegation at the site of such event.

Section 19.2 Delegation Event and Trials. The corporation has the exclusive jurisdiction over all matters pertaining to the participation of the United States in Delegation Events, including, but not limited to, the authority (i) to approve or disapprove selection procedures recommended by NGBs and (ii) to conduct trials. Also, the corporation has the exclusive right to control the use of Olympic, Paralympic and Pan American marks, images and designations in the United States related to those trials. All such trials will be the property of the corporation. An NGB will enter into an agreement with the corporation to manage the trials on behalf of the corporation, unless the corporation otherwise assents in writing that such agreement is not required. For the sake of clarity, the foregoing will in no way prohibit an NGB from holding a regional, national, or other events as part of an approved selection process, provided that (i) the event is in no way branded with any Olympic, Paralympic or Pan American mark and (ii) no athlete earns an automatic nomination to a Delegation Event team by participating in the event.

Section 19.3 Delegation Events and Trials - Participant Issues. All matters arising at a Delegation Event or Delegation Event trials regarding enforcement of USOPC rules and related disciplinary actions (including as these may impact participation rights) and similar matters will be handled as set out in the USOPC Dispute Resolution Policy except with regard to team selection issues and NGB Code of Conduct violations, which are otherwise governed by the NGB Code of Conduct and NGB Grievance Procedures.

SECTION 20

FINANCIAL MATTERS

Section 20.1 Fiscal Year. The fiscal year of the corporation will commence January 1 and end on December 31 each year.

Section 20.2 Accounts, Books, Minutes. The corporation will keep correct and complete books and records of account and will keep minutes of the proceedings of its corporation Board and committees. All books and records of the corporation may be inspected by any director, or such director's authorized agent or attorney, for any proper purpose at any reasonable time.

Section 20.3 Financial Audit. The accounts and financial reports of the corporation will be audited annually by an independent firm of auditors.

Section 20.4 Conveyances and Encumbrances. The assignment, conveyance or encumbrance or sale, exchange, lease or other disposition of any of the real property of the corporation or all or substantially all of the other property and assets of the corporation will only be authorized by the corporation Board if the purpose of such assignment, conveyance or encumbrance or sale, exchange, lease or other disposition of any of the real property of the corporation or all or substantially all of the other property and assets of the corporation complies with the purposes and restrictions on the powers of the corporation set forth in the Act and these Bylaws.

Section 20.5 Designated Contributions. The corporation may accept any designated contribution, grant, bequest or devise consistent with its general tax exempt purposes as set forth in the Act and these Bylaws, and a restricted gifts policy adopted by the corporation Board. The corporation will acquire and retain sufficient control over all donated funds (including designated contributions) to assure that such funds will be used to carry out the corporation's tax exempt purposes.

Section 20.6 Loans to Directors and the Chair Prohibited. No loans will be made by the corporation to the Chair or any other director or to any corporation committee or task force members. Any Chair, director, committee or task force member, who assents to or participates in the making of any such loan will be liable to the corporation for the amount of such loan until it is repaid.

Section 20.7 Individual Liability. No individual officer, director or member of a committee of the corporation will be personally liable in respect of any debt or other obligation incurred in the name of the corporation or any of its committees pursuant to authority granted directly or indirectly by the corporation Board.

Section 20.8 Bonding. All officers, directors, and employees handling funds of the

corporation will be bonded or insured in such amounts as may be determined from time to time by the CEO. The expense of furnishing such bonds will be paid by the corporation.

SECTION 21

IRREVOCABLE DEDICATION AND DISSOLUTION

Section 21.1 Charitable Purposes. The property of the corporation is irrevocably dedicated to charitable purposes, and no part of the net income or assets of the corporation will inure to the benefit of private persons.

Section 21.2 Dissolution. Upon the dissolution or winding up of the corporation, its assets remaining after payment, or provision for payment, of all debts and liabilities of this corporation, will be distributed to a nonprofit fund, foundation, or corporation which is organized and operated for charitable purposes and which has established its tax exempt status under Section 501(c)(3) of the Internal Revenue Code, as amended. The use and disposition on dissolution or winding up of real or personal property owned or used by the corporation in any and all States and Territories which are part of the United States of America will be limited to the purposes stated in the foregoing paragraph in such a manner as to satisfy the requirements of the laws of such States for exemption of such property from property taxation in such States.

SECTION 22

MISCELLANEOUS

Section 22.1 Severability and Headings. The invalidity of any provision of these Bylaws will not affect the other provisions hereof, and in such event these Bylaws will be construed in all respects as if such invalid provision were omitted. The descriptive headings of Sections used in these Bylaws are inserted for convenience only and are not intended to and do not have any operative effect.

Section 22.2 Saving Clause. Failure of literal or complete compliance with any provision of these Bylaws in respect of dates and times of notice, or the sending or receipt of the same, or errors in phraseology of notice of proposals, which in the judgment of the members at meetings held do not cause substantial injury to the rights of members, will not invalidate the actions or proceedings of the members at any meeting.

Section 22.3 Compliance with Laws. Nothing contained in the Bylaws will require the corporation to violate, contravene, or abrogate its duties under any US law, including, but not limited to the Act and the Internal Revenue Code.

SECTION 23

AMENDMENTS OF THE BYLAWS

Section 23.1 Amendments. These Bylaws may be altered, amended or repealed and new Bylaws may be adopted by a majority vote of the corporation Board taken at and noticed for an appropriately called corporation Board meeting. Amendments will take effect at the close of such meeting except in such cases where it may be specified in the resolution approving the amendment that the amendment will take effect during the meeting or at a later time.

Section 23.2 Proposed Amendments. Any member of the corporation Board may recommend that the corporation Board consider amendments to the Bylaws. If a corporation Board member requests amendments to the Bylaws, not later than 60 days before the date of any meeting of the corporation Board at which an amendment is to be voted on, a general notice of the proposed alteration will be published on the corporation's website setting forth the text or substantive terms of the proposed amendment, the time and place of the corporation Board's meeting at which such amendment is to be voted upon, and a provision informing interested persons that they may comment on the proposed amendment by submitting materials and information on the amendment to the corporation not less than 14 calendar days before the corporation Board meeting. All proposed amendments, along with materials or information submitted on the amendment, will be distributed by corporation staff to each member of the corporation Board in a timely fashion.

The undersigned, being the Secretary of the United States Olympic & Paralympic Committee, hereby indicates that on January 21, 2025, the corporation Board adopted the foregoing Bylaws as the Bylaws of the corporation effective February 1, 2025.



Christopher McCleary, Secretary
January 22, 2025